

The Chennai Metropolitan Water Supply and Sewerage Act, 1978

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State of Tamilnadu- Act

The Chennai Metropolitan Water Supply and Sewerage Act, 1978

TAMILNADU

India

The Chennai Metropolitan Water Supply and Sewerage Act, 1978

Act 28 of 1978

Published on 14 June 1978

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The Chennai Metropolitan Water Supply and Sewerage Act, 1978

Tamil Nadu Act

28 of 1978

Statement of Objects and Reasons - Madras Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act 28 of 1978

). - For Statement of Objects and Reasons, please see Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 10th January 1978.

Statement of Objects and Reasons - Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1985 (Tamil Nadu Act 16 of 1985) - Under clause (a) of section 4 of the Madras Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

), the Secretary to Government in-charge of the department of Rural Development and Local Administration shall be the Chairman of the Madras Metropolitan Water Supply and Sewerage Board, ex officio. Now, for administrative convenience the Rural Development and Local Administration Department has been bifurcated into two Departments, namely, "Rural Development Department" and "Municipal Administration and Water Supply Department". Consequent of the bifurcation, the subject "Water supply" has been allocated to the Municipal Administration and Water Supply Department. Hence the Government decided that the Secretary to Government in-charge of the department dealing with the subject water supply should be the Chairman of the said Board, ex-officio.

2. Accordingly the Government decided to amend the Madras Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

). To give effect to the above decision, the Madras Metropolitan Water Supply and Sewerage (Amendment) Ordinance, 1984 (Tamil Nadu Ordinance 17 of 1984) was promulgated by the Governor on the 11th September 1984 and the same was published in the Tamil Nadu Government Gazette, Extraordinary, dated 13th September 1984. A Bill to replace the said Ordinance was introduced in the Tamil Nadu Legislative Assembly on the 11th October 1984. The said Bill could not be taken up for consideration by the Tamil Nadu Legislative Assembly because the Assembly was adjourned sine die on the 15th October 1984 and both the Houses of the Legislature were prorogue on the 31st October 1984. Subsequently, the Legislative Assembly itself was dissolved with effect from the afternoon of the 15th November 1984. Therefore, it became necessary to promulgate an Ordinance again for the above purpose and the Madras Metropolitan Water Supply and Sewerage (Second Amendment) Ordinance, 1984 (Tamil Nadu Ordinance 22 of 1984) was promulgated by the Governor on the 19th November 1984 and the same was published in the Tamil Nadu Government Gazette, Extraordinary, dated the 20th November 1984.

3. It has also been decided that there should be provision in the Madras Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

) to enable the Government to appoint in future even a non-official as Chairman of the Madras Metropolitan Water Supply and Sewerage Board. Necessary amendments in this regard have also been incorporated in the Bill.

4. The Bill seeks to replace the said Ordinance by an Act of the Legislature and also to give effect to the above decision. Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 20th March 1985.

Statement of Objects and Reasons - Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1990 (Tamil Nadu Act 7 of 1990) - Section 4 of the Madras Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

) provides that the Secretary to Government in-charge of the Department dealing with the subject "water-supply" shall be the Chairman of the Board, ex-officio.

2. Section 4-A of the said Act also provides for the appointment of a non-official as the Chairman of the Board in which event, the Secretary K Government, in-charge of the Department dealing with the subject "water-supply" shall function as a Director of the Board.

3. The Government decided that an official other than the Secretary to Government in-charge of the Department dealing with the subject "water supply" may also be appointed as Chairman of the Board and to amend the said Act suitably for the above purpose. Accordingly, the Madras Metropolitan Water Supply and Sewerage (Amendment) Ordinance, 1989 (Tamil Nadu Ordinance 15 of 1989) was promulgated by the Governor on the 27th December 1989 and the same was published in the Tamil Nadu Government Gazette Extraordinary, dated the 29th December, 1989.

4. The Bill seeks to replace the said Ordinance.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated the 22nd January 1990.

Statement of Objects and Reasons - Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1992 (Tamil Nadu Act 6 of 1992). - Under the Madras Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

), the Madras Metropolitan Water Supply and Sewerage Board is empowered to call for tenders of all works and purchase of materials without any monetary limit and settle the same. The Government in G. O. Ms. No. 310, Municipal Administration and Water Supply Department, dated the 7th November 1991, have ordered that tenders in respect of works and purchase of materials by the Board, the cost of which exceeds one crore of rupees, should be approved by the Government.

2. There is also no provision in the Tamil Nadu Act
28 of 1978

empowering the Government to issue any direction to the Board for carrying out the purposes of the Act.

3. In order to give a statutory footing to the orders issued in the aforesaid Government Order and also to empower the Government to give directions to the Board for carrying out the purposes of the Act, it has been decided to amend the Act. Accordingly, the Madras Metropolitan Water Supply and Sewerage (Amendment) Ordinance, 1991 (Tamil Nadu Ordinance 6 of 1991) was promulgated by the Governor.

4. It has now been decided that all tenders in respect of any contract for the execution of any scheme, plan or other work, or for the supply of any materials or goods the value of which exceeds one crore of rupees, shall be finalised by the Government only and the powers of the Madras Metropolitan Water Supply and Sewerage Board shall be limited to that extent and to amend the Act suitably.

5. The Bill seeks to replace the said Ordinance and to give effect to the above decision.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated 7 th February 1992.

Statement of Objects and Reasons - Madras Metropolitan and Water Supply and Sewerage (Amendment) Act, 1994 (Tamil Nadu Act 41 of 1994). - Water Supply and Sewerage Schemes in some portions of the Madras Metropolitan Area are still being looked after by the Tamil Nadu Water Supply and Drainage Board. In order to have better co-ordination between the Madras Metropolitan Water Supply and Sewerage Board and the Tamil Nadu Water Supply and Drainage Board, it is considered necessary that the Managing Director, Tamil Nadu Water Supply and Drainage Board shall also be a Director of Madras Metropolitan Water Supply and Sewerage Board. The Government have, therefore, decided to amend the Madras Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act 28 of 1978

) suitably for the above purpose.

2. The Bill seeks to give effect to the above decision.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, dated 3rd May 1994

Statement of Objects and Reasons - Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1996 (Tamil Nadu Act 35 of 1996). - Section 45(1)(a) of the Madras Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

) provides that the Madras Metropolitan Water Supply and Sewerage Board, on the application by the owner or occupier of any buildings or premises, arrange to supply water thereto for domestic consumption and use, if such building or premises has an annual value of more than three hundred rupees as assessed under section 35. Similarly, section 56(l)(a) of the Act provides that the Board, on the application of the owner or occupier of any premises or the owner of a private street, arrange for the applicant's house-sewer or other sewer in the private street to empty into a sewer of the Board if the premises or of the property in which the private street is situated is assessed to an annual value of not less than three hundred rupees as assessed under section 35.

2. In Madras City, there are some private streets which have not been handed over to the Corporation of Madras. Further, there are some buildings and premises wherein the assessed annual value is less than rupees three hundred. In view of the restrictions based on the annual value of the buildings as provided in sections 45(l)(a) and 56(l)(a) of the Act, the Madras Metropolitan Water Supply and Sewerage Board is not in a position to give water and sewer connections to these buildings and premises. The sewage from these buildings flow on the streets and then into storm water drains causing health hazard. Most of these buildings and premises belong to weaker sections and down rodden in the city. In the interest of the public, Government have now decided to amend sections 45(1)(a) and 56(1)(a) of the Act so as to enable the Board to give water and sewer facilities to all buildings and premises in the Madras city irrespective of the assessed annual value of their buildings and premises.

3. Section 40-A provides that where any contract for the execution of any scheme, plan or other work or for the supply of any materials or goods the value of which exceeds one crore of rupees, the Board, on receipt of the tenders shall place it before the Government which may approve any tender which appears to them upon a review of all the circumstances, to be the most advantageous and thereupon the Board shall accept the tender so approved. Government have, now, decided to omit section 40-A of the said Act.

4. The Bill seeks to give effect to the above decisions.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, 24th August 1996.

Statement of Objects and Reasons - Chennai Metropolitan Area Ground Water (Regulation) Amendment Act, 1997 (Tamil Nadu Act 29 of 1997). - The Committee on Delegated Legislation (1991-92) of the Tenth Assembly in its third report has recommended for collection of fees issue of licences, permits, etc., under the Chennai Metropolitan Area Groundwater (Regulation) Act, 1987 (Tamil Nadu Act 27 of 1987).

2. The Government, accepting the recommendations of the said Committee have decided to prescribe fees for granting of permit to sink well, for registering of existing wells and use of ground water of such wells, for granting of licence for extraction, use or transport of ground water in the city of Chennai and the villages specified in the Schedule to the said Tamil Nadu Act 27 of 1987 and also for appeals against such issue of licence under the said Act. Accordingly, the Government have decided to amend the Act suitably for the above purpose.

3. The Bill seeks to give effect to the above decision.

Published in Part IV-Section 1 of the Tamil Nadu Government Gazette Extraordinary, the 22nd April 1997.

Statement of Objects and Reasons - Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 1997 (Tamil Nadu Act 56 of 1997). - Section 4(a) of the Chennai Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

), provides that the Secretary to Government in charge of the department dealing with the subject "water supply" shall be in Chairman of the Board, ex-officio. The Government have now decided that the Minister in charge of the department dealing with the subject "water supply" shall be the Chairman of the Board, ex officio.

2. The proviso to sub-section (2) of section 81 of the said Tamil Nadu Act

28 of 1978

inter-alia, provides that the Board in making regulations regarding the manner of and the basis on which taxes shall be levied, etc. making, maintaining and regulating connections for the supply of water and fees for connection and reconnection and the term and amount payable for connection of house-sewers, etc. and the basis of levying the charge of providing for sewerage service without water-supply, should obtain the previous sanction of the Government. Now, the Government have also decided that the Board shall be given autonomy in respect of revision, of taxes and charges. Accordingly, it has been decided to amend the said Act suitably.

3. The Bill seeks to give effect to the above decision.

Published in Part IV-section 1 of the Tamil Nadu Government of Gazette Extraordinary, dated the 14th October 1992.

Statement of Objects and Reasons - Chennai Metropolitan Water Supply and Sewerage (Second Amendment) Act, 1997 (Tamil Nadu Act 58 of 1997). - At present there is no provision in the Chennai Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act,

28 of 1978

) for the appointment of a Technical Director as one of the Directors of the Chennai Metropolitan Water Supply and Sewerage Board. The Government have now decided to appoint a Technical Director in consultation with the Chennai Metropolitan Water Supply and Sewerage Board on such terms and conditions to be prescribed by the Government and to validate the appointment of Non-official Technical Director already made as Technical Director. The Government have also decided to include the Technical Director as well as the Executive Director as Members of the Tender Committee. Accordingly, it has been decided to amend the said Tamil Nadu Act

28 of 1978

, suitably.

2. The Bill seeks to give effect to the above decisions.

Published in Part IV-section 1 of the Tamil Nadu Government of Gazette Extraordinary, dated the 16th October 1997.

Statement of Objects and Reasons - Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 1998 (Tamil Nadu Act 30 of 1998). - Hitherto, the property tax in the municipalities and corporations is levied based on the annual value of the building. Since this system of levying the property tax leads to the arbitrary assessment and malpractices, the Government evolved a new and scientific method of assessment of property tax on the basis of the carpet area of the building, its location, type of construction, its use and age of the building. Accordingly, amendments were made to all Acts relating to the Urban local bodies.

2. The Chennai Metropolitan Water Supply and Sewerage Board now collects seven per cent of the annual rental value as water tax. In as much as the property tax is not to be levied on the basis of rental value, it has been decided to levy not exceeding thirty-five per cent of the property tax as water tax and not exceeding fifteen per cent of the property tax

as sewerage tax.

3. Accordingly, the Government have decided to amend the Chennai Metropolitan Water Supply and Sewerage Act, 1978 suitably.

4. The Bill seeks to give effect to the above decision.

Published in Part IV-section 1 of the Tamil Nadu Government of Gazette Extraordinary, dated the 28th May 1998.

Statement of Objects and Reasons - Chennai Metropolitan Water Supply and Sewerage (Second Amendment) Act, 1998 (Tamil Nadu Act 49 of 1998). - There is no provision in the Chennai Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

) for collection of infrastructure development charges from the applicants builders or developers of the multi-storeyed and special buildings, for the provision of adequate water supply and sewerage system. The Government decided to empower the Chennai Metropolitan Water Supply and Sewerage Board to make appropriate regulations for collection of infrastructure development charges from the applicants, builders or developers of multi-storeyed and special buildings for the provision of adequate water supply and sewerage system, Accordingly, it had been decided to amend the said Tamil Nadu Act

28 of 1978

suitably for the said purpose to give effect to the above decision, the Chennai Metropolitan Water Supply and Sewerage (Second Amendment) Ordinance 1998 (Tamil Nadu Ordinance No. 7 of 1998) was promulgated by the Governor on the 7th October 1998 and the same was published in the Tamil Nadu Government Gazette, Extraordinary, dated the 8th October 1998.

2. The Bill seeks to replace the said ordinance.

Published in Part IV-section 1 of the Tamil Nadu Government of Gazette Extraordinary, dated the 23rd November 1998.

Statement of Objects and Reasons - Chennai Metropolitan Water Supply and Sewerage (Third Amendment) Act, 1998 (Tamil Nadu Act 50 of 1998). - As per section 40 of the Chennai Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

), the Chennai Metropolitan Water Supply and Sewerage Board has to obtain previous sanction from the Government in the case of maintenance works, if the cost of such works exceeds crore of rupees in the case of capital works if the cost of such works exceeds seventy-five lakhs of rupees and for all schemes if Government funds are involved. Now the Government have decided that the Chennai Metropolitan Water Supply and Sewerage Board need not seek the previous sanction of the Government for each of the component in the projects, implemented with the financial assistance from the World Bank and other externally aided projects, where the Government gives over all administrative sanction, maintenance works irrespective of its cost, and in respect of schemes funded by agencies such as Housing and Urban Development Corporation where the funds are routed through the Government. The Government also decided that in respect of Government assisted Plan Programmes under Chennai Transmission Distribution System (Water and Sewerage), Chennai Metropolitan Water Supply and Sewerage Board may give administrative sanction up to two and half times of the Budget Estimate after deducting the cost of spill over schemes. Accordingly, it has been decided to amend section 40 of the Chennai Metropolitan Water Supply and Sewerage Act, 1978, suitably.

2. The Bill seeks to give effect to the above decisions.

Published in Part IV-section 1 of the Tamil Nadu Government of Gazette Extraordinary, dated the 23rd November 1998.

Statement of Objects and Reasons - Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 2012 (Tamil Nadu Act 8 of 2012) - The process of transition, following the expansion of territorial limits of the Chennai City Municipal Corporation, by the inclusion of adjacent of local areas is underway. To effectively deal with the continuance of taxes, fees, duties being levied in respect of water supply and sewerage services by the local bodies of such local areas, it has been decided that necessary provision may be inserted in the Chennai Metropolitan Water Supply and Sewerage Act, 1978. Accordingly the Chennai Metropolitan Water Supply and Sewerage (Amendment) Ordinance, 2012 was promulgated by the Governor on the 25th January, 2012 and the same was published in the Tamil Nadu Government Gazette, Extraordinary, dated the 26th January, 2012.

2. The Bill seeks to replace the said Ordinance.

Statement of Objects and Reasons - Chennai Metropolitan Water Supply and Sewerage (Second Amendment) Act, 2012 (Tamil Nadu Act 48 of 2012) - As per sub-section (8) of section 37 of the Chennai Metropolitan Water Supply and

Sewerage Act, 1978, the budget estimates of the Chennai Metropolitan Water Supply and Sewerage Board, as sanctioned by the said Board, shall be submitted to the Government for approval. Now, the Government have decided that the budget estimates of State Public Sector Undertakings and Statutory Boards need not be sent to Government for approval and it is for the Boards of the respective Public Sector Undertakings and Statutory Boards to scrutinise and approve the budget estimate, taking into account the instructions issued by the Government. Accordingly, the Government have decided to amend section 37 of the said Tamil Nadu Act

28 of 1978

suitable for the purpose in view.

2. The Bill seeks to replace the said Ordinance.

Received by the assent of the President and first published in Part IV-Section 2 of the Tamil Nadu Government Gazette Extraordinary, dated the 14th June 1978.

An Act to provide for the constitution of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Water Supply and Sewerage Board, for exclusively attending to the growing needs of, and for a planned development and appropriate regulation of water supply and sewerage services in the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area with particular reference to the protection of public health and for all matters connected therewith or incidental thereto.

Be it enacted by the Legislature of the State of Tamil Nadu in the Twenty-ninth Year of the Republic of India as follows:-

Chapter I

Preliminary

1.

Short title and commencement.

(1)

This Act may be called the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Water Supply and Sewerage Act, 1978.

(2)

It shall come into force on such date as the Government may, by notification, appoint; and different dates may be appointed for different areas and for different provisions of this Act.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"authorised authority" in relation to any power to be exercised or function to be performed under any provision of this Act means any committee, director, officer or other employee of the Board to whom such power or function has been delegated under section 22;

(b)

"Board" means the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Water Supply and Sewerage Board established under section 3;

(c)

"director" means the director of the Board and includes its Chairman and Managing Director;

(d)

"drain" includes a tunnel, pipe, ditch, gutter or channel or any cistern, flush-tank, septic tank, cess pool, or other device for carrying off or treating or disposing sewage, sullage, offensive matter, polluted water, waste water or subsoil water, and also includes any culvert, ventilator, shaft or pipe or other appliances or fittings connected with such drain, and any ejector, compressed air mains, sealed sewage mains and special machinery or apparatus for raising, collecting, expelling or removing sewage, sullage or offensive matter from any place; but does not include a rain or storm water drain or a water table constructed by the side of the road kerb or a chute leading from such water table to a side drain exclusively meant to drain away rain water on the road;

(e)

"existing authority" includes-

(i)

a local authority having jurisdiction over the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area or part thereof; and

(ii)

the Government;

(f)

"local authority" means-

(i)

the Municipal Corporation of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

; or

(ii)

a municipal council, constituted under the Tamil Nadu District Municipalities Act, 1920 (Tamil Nadu Act V of 1920) or a panchayat union council or a panchayat constituted under the Tamil Nadu Panchayats Act, 1958 (Tamil Nadu Act XXXV of 1958)², or

(iii)

a township committee constituted under the Tamil Nadu District Municipalities Act, 1920 (Tamil Nadu Act V of 1920) or the Tamil Nadu Panchayats Act, 1958 (Tamil Nadu Act XXXV of 1958) or under any other law for the time being in force, or

(iv)

the Tamil Nadu State Housing Board constituted under section 3 of the Tamil Nadu State Housing Board Act, 1961 (Tamil Nadu Act 17 of 1961) (hereinafter referred to as the Tamil Nadu State Housing Board), or

(v)

the Tamil Nadu Water Supply and Drainage Board constituted under section 4 of the Tamil Nadu Water Supply and Drainage Board Act, 1970 (Tamil Nadu Act 4 of 1971) (hereinafter referred to as the Tamil Nadu Water Supply and Drainage Board), or

(vi)

the Tamil Nadu Slum Clearance Board established under section 34 of the Tamil Nadu Slum Areas (Improvement and Clearance) Act, 1971 (Tamil Nadu Act 11 of 1971) (hereinafter referred to as the Tamil Nadu Slum Clearance Board), or

(vii)

the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Development Authority established under section 9-A of the Tamil Nadu Town and Country Planning Act, 1971 (Tamil Nadu Act 35 of 1972), (hereinafter referred to as the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Development Authority);

(g)

"Government" means the State Government;

(h)

"[Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area" means the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Planning Area as defined in clause (23-a) of section 2 of the Tamil Nadu Town and Country Planning Act, 1971 (Tamil Nadu Act 35 of 1972);

(i)

"notified date" in relation to any local authority means the date notified under sub-section (1) of section 26 in respect of that local authority;

(j)

"property tax" means the property tax or the house tax, as the case may be, levied and collected by any local authority having jurisdiction over the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area or part thereof;

(k)

"occupier" includes,-

(i)

any person for the time being paying or liable to pay to the owner, the rent or any portion of the rent of land or building or part of the same in respect of which the word is used or damages on account of the occupation of such land, or building or part thereof; and

(ii)

a rent free occupant;

(l)

"owner" includes-

(a)

the person for the time being receiving or entitled to receive, whether on his own account or as agent, trustee, guardian, manager or receiver or for any religious or charitable purpose, the rents or profits of the property in connection with which the word is used;

(b)

the person for the time being in charge of the animal in connection with which the word is used;

(m)

"prescribed" means prescribed by regulations made by the Board;

(n)

"regulations" means regulations made under this Act;

(o)

"sewage" means night-soil and other contents of water closets, latrines, privies, cesspools or drains, and polluted water from shafts, kitchens, bathrooms, stables, cattle sheds and other like places, and includes trade effluent;

(p)

"sewer" means any device for carrying off sewage, sullage, offensive matter, polluted water, waste water, or sub-soil water, and includes a drain;

(q)

"sewerage" means a system of sewers for collection, treatment or disposal of sewage and includes sewerage works;

(r)

"sewerage works" includes any sewer, channel, duct, collection or treatment or disposal units, pumping station, engine, mobile collecting unit, and other machinery and any adjacent land not being private property and any land, building or other things for collection or treatment or disposal of sewage;

(s)

"trade effluent" includes any liquid gaseous or solid substance which is wholly or in part produced or discharged from any premises used for carrying on any trade or industry including agriculture and horticulture, but does not include domestic sewage;

(t)

"Tribunal" means Tribunal constituted under section 70 and having jurisdiction;

(u)

"water supply" means a system of providing water to, a community for meeting its requirement for drinking and other domestic uses, industrial, recreational and other public uses except for purposes of irrigation and generation of hydel power;

(v)

"water works" includes any source of water supply like stream, lake, spring, river or canal, well, reservoir, cistern and tank, dug well, bore well, dug-cum-bore well, tube well, filter points and infiltration galleries, any channel, duct, whether covered or open, desalination plants, treatment units, sluice supply main, culvert, bridge, engine, water tank hydrants,

stand-pipe or post, conduit and machinery and any adjacent land not being private property and any land, building or other things for supplying water or for protecting source of water supply or for treatment of water;

(w)

"year" means the financial year.

Chapter II

Establishment of the Board and its Powers and Functions

3.

Establishment of the Board.

(1)

With effect from such date as the Government may, by notification, appoint in this behalf, there shall be established a Board by the name [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Water Supply and Sewerage Board.

(2)

The Board shall be a body corporate having perpetual succession and a common seal and shall by the said name sue and be sued.

4.

Constitution of the Board.

- The Board shall consist of the following directors, namely:-

(a)

[the Minister in-charge of the department dealing with the subject "water supply", who shall be the Chairman of the Board, ex-officio;

[Substituted by Tamil Nadu Act 56 of 1997.]

(aa)

the Secretary to Government in-charge of the Department dealing with subject water supply, ex-officio;]

(b)

the Secretary to Government in charge of the Finance Department, ex-officio;

(c)

the Member-Secretary of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Development Authority established under section 9-A of the Tamil Nadu Town and Country Planning Act, 1971 (Tamil Nadu Act 35 of 1972), ex-officio;

(d)

the Commissioner, Municipal Corporation of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

, ex-officio;

(dd)

[The Managing Director, Tamil Nadu Water Supply and Drainage Board, ex-officio;]

[Added by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1994 (Tamil Nadu Act 41 of 1994).]

(e)

six-non-official directors nominated by the Government, of whom-

(i)

one shall be a woman;

(ii)

one shall be a person to represent the interest of the general public;

(iii)

one shall be a person who is experienced in Government or commercial accounts and is qualified as a Chartered Accountant within the meaning of the Chartered Accountants Act, 1949 (Central Act XXXVIII of 1949), or a Cost Accountant within the meaning of the Cost and Works Accountants Act, 1959 (Central Act 23 of 1959);

(iv)

one shall be an experienced public health or water works engineer; and

(v)

two shall be persons to represent major industrial or commercial organisations in the Chennai Metropolitan Area;

(f)

three whole time directors appointed by the Government, namely:-

(i)

a Managing Director;

(ii)

a Finance Director; and

(iii)

an Engineering Director.

(g)

[the Chairman of the Board, if any, appointed under sub-section (1) of section 4-A.]

[Inserted by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1990 (Tamil Nadu Act 7 of 1990).]

(h)

[a Technical Director nominated by the Government in consultation with the Board.]

[Inserted by Chennai Metropolitan Water Supply and Sewerage (Second Amendment) Act, 1997 (Tamil Nadu Act 58 of 1997).]

4A.

Appointment of Chairman of the Board in special circumstances.

- [(1) Notwithstanding anything contained in section 4, the Government may, if they think fit so to do in the public interest, by notification, appoint a non-official or an officer of the State Government not below the rank of a Secretary to Government as the Chairman of the Board.]

[Inserted by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1985 (Tamil Nadu Act 16 of 1985).]

(2)

[* * *]

[Omitted by Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 1997 (Tamil Nadu Act 56 of 1997).]

5.

Functions of the Board.

(1)

The Board shall perform all or any of the following functions, namely:-

(a)

promoting or securing the planned development, efficient operation, maintenance and regulation of water supply and sewerage system in the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area;

(b)

preparing long term plans to meet the future requirements of water supply and sewerage in the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area, based on estimates of demand, surveys on availabilities and usage of water and other relevant matters and periodically reviewing, revising and bringing up-to-date such plans;

(c)

undertaking developmental activities with a view to meet the future requirements of water supply and sewerage in the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area;

(d)

operating and maintaining the water supply and sewerage services in the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area to the best advantage of the inhabitants of that area;

(e)

such functions relating to water supply or sewerage as the Government may, by notification, entrust to the Board

provided that such entrustment shall be with the Board's concurrence, if it does not relate to anything to be done in respect of the Chennai Metropolitan Area;

(f)

any other matter which is supplemental, incidental or consequential to any of the above functions; and

(g)

such other functions as may be entrusted to the Board by or under any other law for the time being in force.

(2)

In the discharge of its functions, the Board shall-

(a)

have due regard to public health, safety and convenience of the public;

(b)

consult and collaborate with the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Development Authority in regard to planning and undertaking development activities connected with the water supply and sewerage systems for the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area and extend full assistance to and co-operate with the local authority in relation to matters connected with water supply systems or water works or sewerage works or road works or similar works;

(c)

be guided by such instructions on questions of policy involving public interest as may be given to it by the Government and in case of any difference of opinion as to whether a question is or is not a question of policy involving public interest, the decision of the Government thereon shall be final.

(3)

Subject to the provisions of this Act, the Board shall exercise all powers, perform all functions and carry out duties in respect of water supply and sewerage systems in the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area to the exclusion of any department of the Government or any other existing authority.

(4)

The Board shall endeavour to be financially self-supporting, and shall for this purpose so conduct its affairs that its income is adequate to meet all its outgoings, provisions for or allocations towards future obligations and costs.

(5)

The Board shall furnish, from time to time, to the Government such returns and information as the Government may require.

6.

Powers of the Board.

(1)

The Board shall, subject to the provisions of this Act, have the power to do anything which may be necessary or expedient for the purpose of carrying out its functions and duties under this Act.

(2)

Without prejudice to the generality of the foregoing provision, the Board shall have the power-

(i)

to take over all existing responsibilities, powers, controls, facilities, services and administration relating to water supply and sewerage in or for the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area;

(ii)

to enlarge, improve or develop existing facilities and to construct and operate new facilities for water supply and sewerage in or for the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area;

(iii)

to prepare schemes for water supply and sewerage (including abstraction of water from any natural source and the disposal of waste and polluted water) in or for the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Area;

(iv)

to regulate the construction, maintenance and repairs of wells, tanks and ponds and the drilling of tubewells, whether public or private, in the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Area;

(v)

to control extraction, conservation and use of underground water in the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Area;

(vi)

to prevent pollution of any water including any water source, water course or channel utilised for the purpose of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Area;

(vii)

to prescribe the manner of treatment of trade effluents before discharge thereof and to regulate the discharge thereof into any sewer canal, river or other water channel utilised for the purpose of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Area;

(viii)

to conduct research, experiment and survey and to do all things necessary for that purpose;

(ix)

to enter into contracts, agreements or arrangements with any person, firm or organisation;

(x)

to acquire, hold and dispose of property, movable or immovable;

(xi)

to prepare and adopt its annual accounts and budgets;

(xii)

to determine, levy and collect taxes, rates, fees, charges, surcharges, rents and costs and expenses authorised under this Act;

[(xii-a) to collect infrastructure development charges from the applicant builder or developer of such multi-storeyed building or special buildings as may be prescribed for the provision of adequate water supply or sewerage;]

[Inserted by Tamil Nadu Act 49 of 1998.]

(xiii)

to borrow money, issue debentures and manage its funds, including the power to mortgage, hypothecate, or pledge any of its assets;

(xiv)

to incur expenditure and to grant loans and advances as it may deem necessary and to recover the principal and interest thereon on such terms and conditions as it may specify; and

(xv)

to do all things necessary for the purpose of carrying out the provisions of this Act.

7.

Power of Board to call for information.

- The Board may, for the purposes of carrying out the provisions of this Act, by notice require any person to furnish such information in his possession relating to water supply and sewerage systems, and shall act as a centre for the collection and exchange of information on such matters, in order to facilitate the preparation of studies, scheme or plans and the development of policies which promote the purposes of this Act.

8.

Board to be exempt from sales tax and treated like Government for certain other taxes.

(1)

The Board shall be exempt from tax under any law relating to sales tax for the time being in force, in respect of water supply and sewerage services rendered by it.

(2)

Where under any law relating to municipal corporation, municipality, township, panchayat or planning or development authority, the Board and its properties and assets are subject to the levy of any tax, rate, charge, cess, fee, betterment levy or development charge, the rate or amount of such levy shall be the same as that applicable to the properties belonging to the Government or any local authority.

9.

Compulsory acquisition of land, etc.

- Any land or any interest therein required by the Board for the purposes of this Act shall be deemed to be needed for a public purpose within the meaning of the Land Acquisition Act, 1894 (Central Act I of 1894).

Chapter III

Directors, Committees and Employees of the Board

10.

Managing Director.

(1)

The Managing Director shall be a person who has special knowledge or practical experience in respect of matters relating to water supply and sewerage, or has sufficient experience in administrative matters and arrangements.

(2)

The appointment of the Managing Director shall be for such period not less than three years as the Government may determine and the person appointed shall be eligible for re-appointment.

(3)

The Managing Director shall be the Chief Executive Authority of the Board and shall be in charge of the day-to-day administration of the Board and shall exercise supervision and control over the employees of the Board.

(4)

With the approval of the Board, the Managing Director may delegate to any officer of the Board any of his functions and powers except those delegated to him under section 22.

11.

Finance and Engineering Directors.

(1)

The Finance Director shall be a person having practical experience in financial administration and in matters relating to finance and accounts, and the Engineering Director shall be a person qualified in engineering, having experience in water supply and sewerage systems.

(2)

The Finance Director and the Engineering Director shall hold office until the age of superannuation applicable under, or until their service is terminated pursuant to the terms and conditions determined under section

11A.

[Term of office and conditions of service of the Chairman.

[Inserted by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1985 (Tamil Nadu Act 16 of 1985).]

- The term of office and the terms and conditions of service of the non-official Chairman appointed under section 4-A and the manner of filling casual vacancies in the office of the non-official Chairman shall be such as may be prescribed.]

12.

Terms and conditions of service of whole time directors.

- The remuneration and other terms and conditions of service of the Managing Director, Finance Director and Engineering Director shall be, such as may be determined by the Government in the case of first appointment and in the case of subsequent appointment shall be such as may be prescribed by the Board with the approval of the Government.

12A.

[Technical Director.

[Inserted by Chennai Metropolitan Water Supply and Sewerage (Second Amendment) Act, 1997 (Tamil Nadu Act 58 of 1997).]

- The Technical Director shall be a person of proven experience and knowledge on water and sewerage service and who shall represent the Central or State Government or of a local authority or of a corporation or company owned or controlled by the Central or State Government and shall hold office for such period and subject to such terms and conditions as may be prescribed by the Government.]

13.

Non-official directors.

(1)

The term of office of non-official directors shall be two years: Provided that such directors shall continue to hold office until their successors are nominated and assume office.

(2)

Non-official directors shall be paid such fees and allowances as may be prescribed for attending the meetings of the Board or of any of its committees and for attending to any other work of the Board.

14.

Disqualifications for [appointment as non-official Chairman or as director]

[Inserted by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1985 (Tamil Nadu Act 16 of 1985).]
of the Board.

(1)

No person shall be eligible for being [appointed as non-official Chairman or as whole time director]

[Inserted by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1985 (Tamil Nadu Act 16 of 1985).]
or nominated as a non-official director if he-

(a)

has been removed or dismissed from the service of the Central or State Government or of a local authority or of a corporation or company owned or controlled by the Central or State Government, or

(b)

is or at any time has been adjudicated as an insolvent or has suspended payment of his debts or has compounded with his creditors; or

(c)

is of unsound mind and stands so declared by a competent Court; or

(d)

has been convicted of any offence, which in the opinion of the Government involves moral turpitude; or

(e)

[is a non-official Chairman or nomination as a non-official director]

[Substituted by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1985(Tamil Nadu Act 16 of 1985).]

, is an employee of the Board or of the Central or State Government or of a local authority or of a corporation or company owned or controlled by the Central or State Government; or

(f)

having directly or indirectly, by himself or by any partner any share or interest in any subsisting contract made with, or any work being done for the Board; or

(g)

is a director or a secretary, manager or other officer of any incorporated company which has any share or interest in any subsisting contract made with, or any work being done for, the Board.

(2)

[If the non-official Chairman or a whole time director]

[Substituted by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1985 (Tamil Nadu Act 16 of 1985).]
or non-official director-

(a)

becomes subject to any of the disqualifications mentioned in clauses (a) to (g) of sub-section (1), or

(b)

is absent without leave of the Board for more than three consecutive meetings thereof, he shall cease to be [such

Chairman or director]

[Substituted by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1985 (Tamil Nadu Act 16 of 1985).]
or non-official director.

(3)

A person shall not be disqualified under clause (f) or clause (g) of sub-section (1) or be deemed to have any share or interest in any contract within the meaning of those clauses, by reason only of his or his partner of the incorporated company of which he is a director, secretary, manager, or other officer, having a share or interest in-

(i)
sale, purchase, lease, or exchange of immovable property or any agreement for the same;

(ii)
any agreement for the loan of money or any security for the payment of money only;

(iii)
any newspaper in which any advertisement relating to the affairs of the Board is inserted;

(iv)
the occasional sale to the Board, if the sum paid as consideration does not exceed two thousand rupees in any one year of any article in which he or his partner of the incorporated company regularly trades.

(4)

A person shall not also be disqualified under clause (f) or clause (g) of sub-section (1) or be deemed to have any share or interest in any contract with, by or on behalf of, the Board, by reason only of his being a share holder of such company:

Provided that such person shall disclose to the Government, the nature and extent of the shares held by him.

15.

[Removal of non-official Chairman and directors.

[Substituted by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1985 (Tamil Nadu Act 16 of 1985).]

(1)

If at any time, it appears to the Government that a whole time director is unsuitable for such office, or has been guilty of any misconduct or neglect which renders his removal expedient, they may, by notification, remove him from office after giving him a reasonable opportunity of showing cause.

(2)

The Government, may, by notification, [remove the non-official Chairman or any non-official director] after giving him a reasonable opportunity of showing cause-

(a)

if he, being a legal practitioner acts or appears on behalf of any person other than the Board in any civil, criminal or other legal proceedings in which the Board is interested either as a party or otherwise, or

(b)

if he, in the opinion of the Government, is unsuitable or has become incapable of acting as a director or has been guilty of any misconduct or neglect or has so abused his position as a director as to render his continuance as [such Chairman or director]

[Substituted by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1985 (Tamil Nadu Act 16 of 1985).]
detrimental to the interests of the Board.

(3)

[A non-official Chairman or a non-official director]

[Substituted by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1985 (Tamil Nadu Act 16 of 1985).]
removed under the provision of clause (a) of sub-section (2) shall, unless otherwise directed by the Government, be disqualified for [appointment as the Chairman or a director]

[Substituted by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1985 (Tamil Nadu Act 16 of 1985).]
for a period of three years from the date of such removal.

(4)

[A non-official Chairman or a non-official director]

[Substituted by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1985 (Tamil Nadu Act 16 of 1985).]
removed under clause (b) of sub-section (2) shall not be eligible for re-appointment until he is declared by an order of

the Government to be no longer as ineligible.]

16.

Resignation and temporary absence of directors.

(1)

Any director may resign his office, by giving notice in writing to the Government and the director giving such notice of the resignation, shall, on notification by the Government, be deemed to have vacated his office on and from the date on which the resignation is so notified.

(2)

If any whole-time director is on account of illness or otherwise rendered temporarily incapable of carrying out his duties or is absent on leave or otherwise, in circumstances not involving the vacation of his office, the Government may authorise any other whole-time director to discharge the duties of such director in addition to his own.

17.

Committees.

(1)

There shall be established the following committees, namely:-

(a)

"Public Relation Committee" consisting of the Chairman of the Board, the Managing Director, the directors referred to in clause (c), clause (d), clause (e) (i) and (ii) of section 4, and one of the two directors referred to in clause (e) (v) of that section;

(b)

a "Tariff Committee" consisting of the Chairman of the Board, the Managing Director, the Finance Director, the Directors referred to in clause (b), clause (e) (ii) and (iii) of section 4, one of the two directors referred to in clause (e) (v) of that section and the head of the planning branch of the Board;

(c)

a "Tenders Committee" consisting of the Managing Director, the Finance Director, the [Engineering Director, the Technical Director, the Executive Director and]

[Substituted by Chennai Metropolitan Water Supply and Sewerage (Second Amendment) Act, 1997 (Tamil Nadu Act 58 of 1997).]

the directors referred to in clause (b), clause (e) (iii) and (iv) of section 4;

(d)

an "Employment Committee" consisting of the Managing Director, the Finance Director, the Engineering Director and the heads of planning, personnel and materials branches of the Board.

(2)

The Board may constitute as many other committees consisting wholly of directors or wholly of other persons or partly of directors and partly of other persons, for such purposes as it may deem fit.

18.

Meetings of the Board and the Committee.

(1)

(a)

The Board shall meet at least once in every three months.

(b)

The Committee shall meet at such times as may be prescribed.

(2)

The Chairman of the Board and, in his absence, [. . .]

[Omitted by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1985 (Tamil Nadu Act 16 of 1985).]

the person chosen by the directors presents, from among themselves, shall preside at the meetings of the Board.

(3)

The meetings of the Public Relations Committee and the Tariff Committee shall be presided over by the Chairman of the Board and the meetings of the Tenders Committee, the Employment Committee and the Management Committee shall be presided over by the Managing Director.

(4)

The meetings of other Committees shall be presided over by such director as may be specified by the Board.

(5)

In the absence of the director who is to preside at meetings under sub-section (3) or sub-section (4), the remaining members of the Committee concerned shall choose one among themselves to preside at the meeting concerned.

(6)

The Board and the Committees shall observe such rules of procedure in regard to the transaction of business at meetings as may be prescribed.

(7)

All issues at any meeting of the Board or any Committee shall be decided by a majority of the votes of the directors or the members of the Committee present and voting and in the case of equality of votes, the person presiding shall have and exercise a second or casting vote.

(8)

If, for any reason, a director referred to in [clause (aa), clause (b), clause (c) or clause (d) of section 4]

[Substituted for the expression 'clause (b), clause (c), clause (d), or section 4 or in sub-section (2) of Section 4' by Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 1997 (Tamil Nadu Act 56 of 1997).]

[* * *]

[The expression 'or in sub-section (2) of section 40-A' inserted by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1985 (Tamil Nadu Act 16 of 1985) was later substituted by Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 1997 (Tamil Nadu Act 56 of 1997).]

is unable to attend any meeting of the Board or of any Committee, the Government may, by order, in writing nominate an officer of the Government or an officer of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Development Authority or an officer of the Municipal Corporation of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

, as the case may be, to attend such meeting and the officer so nominated shall, for the purposes of this Act, be deemed to be a director.

19.

Appointment of officers and other employees.

(1)

The Board may appoint such officers and other employees as it considers necessary for the efficient performance of its functions:

Provided that the Board shall not, without previous approval of the Government, create any post the maximum monthly salary of which exceeds two thousand five hundred rupees, or appoint any person to any post the maximum monthly salary of which exceeds two thousand rupees.

(2)

Without prejudice to the provisions of sub-section (1), it shall be lawful for the Board to utilise such employees of the Government or any local authority or other institution on such terms and conditions as may be agreed upon between the Board and the Government, or local authority, or institution, as the case may be.

20.

Appointment of employees of local authorities.

(1)

Subject to the provisions of sub-section (2), every person, who immediately before the notified date, is an employee of local authorities and who has been serving in connection with the water-supply or sewerage system maintained in respect of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area shall, as from that date, be transferred to the service under the Board in accordance with the provisions of this section:

Provided that nothing contained in this section shall apply to any employee of the Tamil Nadu State Housing Board or the Tamil Nadu Slum Clearance Board or an employee of any other existing authority who has, by notice, in writing intimated his intention or not becoming an employee of the Board within a period of three months from the notified date.

(2)

(a)

For the purpose of sub-section (1), the number of employees to be transferred to the service of the Board shall not exceed the total number of employees of the existing authority serving as on the first day of January, 1977, in connection with the water-supply or sewerage system maintained by such existing authority for the [Chennai]
[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Area.

(b)

If the number of employees of an existing authority eligible for transfer under sub-section (1) exceeds the total number referred to in clause (a), the existing authority concerned shall determine the number of employees to be transferred so as to conform to such total number.

(c)

If there is any doubt or dispute as to whether any employee has been serving in connection with water-supply or sewerage service, as referred to in subsection (1) or is eligible for transfer to service under the Board, or has not been properly excluded from the employees to be transferred, the matter shall be referred to the Government whose decision thereon shall be final.

(3)

The Board may select an employee of an existing authority to which subsection (1) applies, for appointment to the service of the Board if such employee has been serving partly in connection with the water-supply or sewerage system maintained for the [Chennai]
[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Area:

Provided that no such appointment shall be made without the consent of the employee concerned.

(4)

An employee appointed to the service of the Board under sub-section (2) or sub-section (3) shall-

(a)

cease to be an employee of the existing authority concerned with effect from the date of his appointment to the service of the Board;

(b)

become an employee of the Board on such remuneration and other terms and conditions of service as the Board may determine and such determination shall be final:

Provided that the remuneration and other terms and conditions of service of such an employee shall not be varied by the Board to his disadvantage except with the previous approval of the Government.

(5)

In respect of every employee who is appointed to the service of the Board under sub-section (2) or sub-section (3), the existing authority concerned shall transfer to the Board the full amount on account of provident fund or other superannuation fund, if any, lying to his credit with such authority on the date on which such appointment takes effect and the period of service under the existing authority of each such employees shall be taken into account in determining the amount of pension or gratuity, if any, to which an employee may be entitled on the termination of his service under the Board.

(6)

An existing authority shall, in respect of employees appointed under subsection (2) and sub-section (3), credit to the Board such amounts as represent the cash equivalent of any leave credited to or any length of service taken or required to be taken into account by the Board for gratuity or pension of such employees and if there is any dispute about the amounts, the matter shall be referred to the Government whose decision thereon shall be final:

Provided that the payment of the amount of such cash equivalent to the Board shall be in such manner as may be agreed by Board, and shall be made in instalments or at the time when the gratuity or pension becomes due.

(7)

Notwithstanding anything contained in any law relating to industrial disputes or any other law for the time being in force, no employee transferred or appointed to the service of the Board under sub-section (2) or sub-section (3) shall be entitled to any compensation under any such law by reason only of the termination of his service under the existing authority and no claim for such compensation shall be entertained by any court, tribunal or other authority.

(8)

No person who becomes an employee of the Board under this section shall have any right or claim against the Board in respect of his service prior to his becoming such employee except as otherwise provided in this section.

21.

Common Service Cadre.

- Notwithstanding anything contained in any other provision of this Act or in any other law for the time being in force or in any contract or other instrument, the Board may, with the concurrence of the Tamil Nadu Water Supply and Drainage Board, establish common service cadres, and service conditions for the staff employed by either Board and such staff shall be liable to be posted or transferred to the service of either Board:

Provided that no employee of an existing authority appointed to the service of the Board under section 20 shall be transferred or posted to the service of the Tamil Nadu Water Supply and Drainage Board except with his consent.

22.

Delegation of powers.

- The Board may by general or special order, delegate to any Committee or to any director or to any officer or other employee of the Board, subject to such conditions and limitations, if any, as may be specified, such of its powers and functions under this Act:

Provided that the Board shall not delegate any of its powers and functions referred to in section 12, sub-section (2) of section 17, sub-section (2) of section 19 and section 21 and the power to make regulations under this Act.

23.

Indemnity of certain directors and bar to proceedings.

(1)

Every non-official director shall be indemnified against all losses and expenses incurred by him in, or in relation to, the discharge of his duties except such as are caused by his own wilful act or default.

(2)

No suit or other proceeding shall be instituted against any director or member of any Committee or officer or employee of the Board for anything in good faith done or intended to be done in pursuance of this Act or any regulation or other instrument made thereunder.

24.

Defects not to invalidate acts.

(1)

No act or proceeding of the Board or of any Committee shall be questioned on the ground merely of the existence of any vacancy in, or defect in, the constitution or reconstitution of, the Board or the Committee, as the case may be.

(2)

All acts done by any person acting in good faith as a director shall, notwithstanding that he was disqualified to be a director or that there was any other defect in his appointment, be deemed to be valid.

Chapter IV

Establishment, Transfer and Vesting of Water-Supply and Sewerage Services

25.

Local authority to furnish information to Board prior to notified date.

- Immediately after the establishment of the Board under section 3, every local authority shall furnish to the Board, the following information and particulars:-

(a)

The description and details of all properties to be transferred to the Board under this Act;

(b)

The particulars of liabilities to be transferred to the Board under the provisions of this Act;

(c)

he particulars relating to existing contracts and other obligations devolving on the Board under the provisions of this Act;

(d)

The particulars of all legal proceedings covered by section 30 to which the existing authority is a party, pending on the date of establishment of the Board.

26.

Vesting of water-supply and sewerage services in the Board.

(1)

Subject to the other provisions contained in this Act, all properties, assets and liabilities of an existing authority relating to water supply and sewerage services exclusively for the Chennai Metropolitan Area (including all works in progress and all water works and sewerage works situated in or outside that Area and connected with the services as aforesaid) shall stand transferred to, and vest in, the Board, with effect from such date as the Government may, by notification, appoint:

Provided that different dates may be notified-

(i)

for different existing authorities;

(ii)

for the vesting of different properties, assets and liabilities of the existing authorities.

(2)

Where any water works situate outside the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area is utilised partly for water supply for that area and partly for other areas or purposes, the Board and the Government shall enter into an agreement not later than three months from the date of coming into force of this Act specifying the nature and extent of the Board's control over such works, the quality and quantity of water to be supplied for that area and other matters connected therewith:

Provided that, in the absence of such agreement or until such time as such agreement is reached, the Government shall be responsible for the continuance and maintenance of the arrangements and works in existence on the date of coming into force of this Act.

(3)

The assets relating to water supply and sewerage service referred to in sub-section (1) shall be deemed to include all rights, powers, authorities and privileges, and all property, movable and immovable, including cash balances, deposits, funds and investments and all other interests and rights in, or arising out of, such property and all books, accounts and documents relating thereto as may be in the possession or control of a local authority immediately before the notified date, and the liabilities relating thereto shall be deemed to include all debts, liabilities and obligations pertaining to such services.

(4)

If the notified date in relation to the Municipal Corporation of Chennai is earlier than the notified date in relation to the Government, the Government shall until the latter date and in respect of the water works situated outside, but used exclusively for the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area, be responsible for the continuance and maintenance of the arrangements and works in existence on the former date.

27.

Provision for continuance of works in progress.

(1)

Notwithstanding the transfer of the assets and liabilities of an existing authority to the Board under sub-section (1) of section 26, the provisions of this section shall apply to works in progress.

(2)

With effect from the notified date applicable to the Municipal Corporation of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

, the works in progress which are being executed or carried out by that Corporation (excluding such works executed or carried out by the Tamil Nadu Water Supply and Drainage Board, or for the benefit of the said Corporation) immediately prior to that date, shall be taken over by the Board which shall be responsible for the continuance and completion thereof from that date.

(3)

Works in progress which are being executed or carried out by the Tamil Nadu Water Supply and Drainage Board for any other existing authority immediately prior to the notified date applicable to the existing authority concerned shall be

continued and completed by that Board-

(a)

on behalf of the existing authority, if the assets and liabilities of that authority had not been transferred to the Board under sub-section (1) of section 26; and

(b)

on behalf of the Board, if such assets and liabilities had been so transferred to the Board.

(4)

In cases to which sub-section (2) or sub-section (3) is not applicable, works in progress which are being executed or carried out by an existing authority immediately prior to the notified date applicable to that authority, the existing authority shall be responsible for the continuance and completion thereof from that date.

(5)

The existing authority concerned shall be responsible for the satisfactory completion of the work specified in sub-section (3) and sub-section (4) and shall be fully accountable therefor and immediately after the completion of such work hand over to the Board all properties and assets pertaining to such work.

(6)

Where an existing authority continues to execute any work under this section, the Board shall be entitled to exercise such powers of supervision over such work and all matters connected therewith as it may deem necessary to safeguard its interests and if the Board considers that the existing authority is carrying out such work in a manner prejudicial to the interests of the Board or at an unduly excessive cost, the Board may refer the matter to the Government for such action as may be considered necessary in the circumstances.

Explanation. - For the purposes of this section and section 26, "works in progress" shall include any work pertaining to water supply or sewerage services in or for the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area which has actually commenced and is pending completion on the relevant date applicable under section 26, but shall not include the maintenance, alteration or repair of any work already completed or in use.

28.

Duty to transfer assets, etc., to Board.

(1)

Where any property or assets have been transferred to, and vested in, the Board under sub-section (1) of section 26, then,-

(a)

every person, in whose possession, custody or control any such property or assets may be) shall deliver the property or assets to the Board forthwith except as otherwise provided in section 27;

(b)

any person who, on the notified date, has in his possession, custody or control any books, documents or other papers relating to the water supply and sewerage services, referred to in sub-section (1) of section 26 shall be liable to account for the said books, documents and papers to the Board, and shall deliver them to the Board or to such person as the Board may direct.

(2)

It shall be lawful for the Board to take all necessary steps for securing possession of all properties and assets which have been transferred to and vested in it under this Act.

29.

Settlement of disputes.

(1)

All questions relating to the transfer and vesting of any asset or property under sub-section (1) of section 26, including identification and valuation of assets and liabilities and any financial arrangement shall be determined -

(a)

in the case of the Government, by agreement between the Government and the Board; and

(b)

in the case of any other existing authority, by a committee consisting of a nominee of the Board and of the existing authority concerned.

(2)

If the decision of the committee on any question is not acceptable to the Board or the existing authority concerned, the matter shall be referred to the Government whose decision thereon shall be final.

(3)

The value determined under this section shall be entered in the books of the Board as the value on the date of transfer.

30. Continuance of existing provisions, contracts, obligations, legal proceedings, etc.

- With effect from the notified date-

(a)

any notification, order, scheme, rule, bye-law, form or notice made or issued, and any licence or permission granted by any existing authority insofar as it relates to water-supply or sewerage service in or for the purpose of the [Chennai] [Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).] Metropolitan Area, shall continue in force and be deemed to have been made, issued or granted under the provisions of this Act, unless and until it is superseded by any notification, scheme, order, regulation, form or notice made or issued or any licence or permission granted under this Act;

(b)

all obligations and liabilities incurred, all contracts entered into, all matters and things engaged to be done by, with, or for the existing authority, before the notified date in connection with the water-supply or sewerage service in or for the purpose of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).] Metropolitan Area, shall be deemed to have been incurred, entered into or engaged to be done by, with, or for the Board;

(c)

all suits, prosecutions, appeals or other legal proceedings of whatever nature instituted or which might have been instituted by or against an existing authority, insofar as they relate to the assets and liabilities transferred to the Board under section 26, may be continued or instituted by or against the Board:

Provided that nothing contained in this clause shall apply to any such suit, prosecution, appeal or other legal proceeding in respect of the levy, collection or payment of any rate, charge, cess or fee for any period prior to the notified date applicable to the existing authority concerned.

Chapter V

Finance, Accounts and Audit

31.

Board's fund.

(1)

The Board shall have its own fund and all receipts of the Board shall be credited thereto and all payments by the Board shall be made therefrom.

(2)

All moneys belonging to that fund may be deposited or invested-

(i)

in any scheduled bank within the meaning of the Reserve Bank of India Act, 1934 (Central Act II of 1934); or

(ii)

in any corresponding new bank as defined in the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970 (Central Act 5 of 1970); or

(iii)

in the State Bank of India as defined in the State Bank of India Act, 1955 (Central Act XXIII of 1955) or its subsidiary banks as defined in the State Bank of India (Subsidiary Banks) Act, 1959 (Central Act 38 of 1959); or

(iv)

in such securities as may be approved by the Government.

(3)

The Government may, from time to time, make grants, subventions, or advances or loans to the Board for the purposes of this Act on such terms and conditions as the Government may determine.

(4)

The Board may accept grants, subventions, donations and gifts from the Central or State Government or a local authority, or any individual or body, whether incorporated or not, for all or any of the purposes of this Act.

(5)

The Board may constitute a sinking fund, depreciation reserve fund and other funds in such manner and in such form as may be prescribed. Such funds shall be invested in such manner as may be determined by the Board with the approval of the Government.

32.

Power of the Board to borrow and lend.

(1)

Subject to the provisions of this Act and the regulations made thereunder and subject to such conditions as may be specified by the Government by a general or a special order issued in this behalf by them and with their previous approval, the Board may, from time to time, borrow money required for the purposes of this Act by any one or more of the manners specified below:-

(a)

raising loans from any bank or other financing institutions or the Life Insurance Corporation of India established under section 3 of the Life Insurance Corporation Act, 1956 (Central Act 31 of 1956); or

(b)

raising loans from any corporation owned or controlled by the Central or the State Government; or

(c)

raising loans from the public by issue of bonds, or debentures or stocks or otherwise in the form and manner approved by the Government:

Provided that the loans or amounts borrowed under this sub-section shall be utilized only for the specific purpose or purposes for which such loans or borrowings were raised or made.

(2)

Subject to the provisions of this Act and to such conditions and limitations as may be specified, the Board may out of its funds grant loans and advances, on such terms and conditions as it may determine to any local authority for any development scheme.

(3)

the Government may guarantee in such manner as they think fit, the repayment of the principal and interest of any loan proposed to be raised by the Board under sub-section (1):

Provided that the Government shall, so long as any such guarantees are in force, lay before [the Legislative Assembly] [Substituted for the words 'both Houses of the Legislature' by the Tamil Nadu Adaptation of Laws Order, 1987.]

in every year during the Budget session, a statement of the guarantees, if any, given during the current year and an up-to-date account of the total sums, if any, which have been paid out of the Consolidated Fund of the State by reason of any such guarantees or paid into the said Fund towards re-payment of any money so paid out.

33.

Form, signature, exchange, transfer and effect of debentures.

(1)

Whenever money is borrowed by the Board on debentures, the debentures shall be in such form as the Board may, with the previous approval of the Government, specify.

(2)

All debentures shall be signed by the Managing Director of the Board.

(3)

The holder of any debenture in any form specified under sub-section (1) may obtain in exchange therefor a debenture in any other form specified in the manner provided in sub-section (1) and upon such terms as the Board may determine.

(4)

Every debenture issued by the Board shall be transferable by endorsement, unless some other mode of transfer is specified therein.

(5)

All coupons attached to debentures issued by the Board shall bear the signature of the Managing Director; and such

signature may be engraved, Lithographed or impressed by any mechanical process.

34.

Taxes leviable by the Board.

(1)

For the purposes of this Act, the Board shall levy on premises situated within its area-

(a)

a water tax; and

(b)

a sewerage tax.

(2)

The taxes mentioned in sub-section (1) shall be levied at such rates as may be prescribed which in the case of water tax [shall not be more than thirty-five per cent and in the case of sewerage tax shall not be more than fifteen per cent of the property tax]

[Substituted by Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, (Tamil Nadu Act 30 of 1998).]

.

(3)

The Board may, [* * *]

[Omitted by Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, (Tamil Nadu Act 30 of 1998).]

exempt any local area from the whole or portion of the water tax and sewerage tax on the ground that such area is not deriving any or the full benefit from the water-supply or sewerage system. The Board may remit a portion of such taxes not exceeding one half on the ground that the premises concerned has remained vacant.

Explanation. - For the purposes of this Chapter, the expression "premises" shall mean any land or building.

(4)

Where water tax or drainage tax is comprised in the [property tax]

[Substituted by Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 1998 (Tamil Nadu Act 30 of 1998).]

levied and collected by the existing authority, such existing authority shall reduce the [property tax]

[Substituted by Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 1998 (Tamil Nadu Act 30 of 1998).]

by an amount equal to the amount attributable to water tax and drainage tax.

35.

[* * *]

[Omitted by Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 1998 (Tamil Nadu Act 30 of 1998).]

36.

Restriction on the levy of taxes.

- The taxes mentioned in section 34 shall not be levied on any land exclusively used for agricultural purposes unless water is supplied by the Board for such purposes to that land.

37.

Budgets.

(1)

The Finance Director shall, in each year, prepare a revenue budget for the next ensuing year and the succeeding two years showing the estimated income and expenditure and place it before the Board for adoption.

(2)

Every such budget shall, as far as practicable, make provision for the due fulfilment of all the liabilities of the Board, and for the proper implementation of this Act.

(3)

Every such budget shall differentiate between capital and revenue, and capital funds shall not be used for revenue purposes.

(4)

Whenever the Board adopts a development plan under the provisions of this Act, the Finance Director shall prepare and place before the Board a capital budget covering a period of five years from the commencement of the plan and such

budget may be reviewed and revised by the Board, from time to time.

(5)

The Finance Director shall also prepare and place before the Board annually, a cash budget for the succeeding three financial years.

(6)

Save as otherwise provided in this section, all budgets shall be in such form, shall contain such information and shall be prepared by such dates as may be prescribed.

(7)

The Board shall consider every budget so laid before it and shall [approve]

[Substituted for 'sanction' by Act No. 48 of 2012, dated 16.11.2012.]

the same, either without modification or with such modification as it may deem fit.

[* * *]

[Sub-section (8) omitted by Act No. 48 of 2012, dated 16.11.2012.]

(9)

The Board may, at any time during the year for which any budget has been [approved]

[Substituted for 'sanctioned' by Act No. 48 of 2012, dated 16.11.2012.]

, cause a revised budget to be prepared and laid before it.

38.

Balance sheet and income and expenditure account.

(1)

The balance sheet, income and expenditure account and statement of sources and application of funds of the Board shall be prepared in such form and in such manner as may be prescribed.

(2)

The Board shall cause the books and accounts of the Board to be balanced and closed in each year as on the thirty-first day of March.

39.

Audit.

(1)

The accounts of the Board shall be audited by an auditor duly qualified to act as an auditor under sub-section (1) of section 226 of the Companies Act, 1956 (Central Act 1 of 1956), who shall be appointed by the Board with the approval of the Government and who shall receive such remuneration as the Board may fix.

(2)

The auditor shall be supplied with a copy of the annual accounts of the Board and it shall be his duty to examine it together with the books and vouchers relating thereto and he shall have a list delivered to him of all books kept by the Board and shall, at all reasonable times, have access to the books, accounts, vouchers and other documents of the Board.

(3)

The auditor may, in relation to such accounts, examine any past or present director, officer or other employee of the Board and shall be entitled to require from the Board or such director, officer or other employee such information and explanation as he may think necessary for the performance of his duties.

(4)

The auditor shall make a report to the Board upon the annual accounts examined by him and in every such report, he shall state whether in his opinion the accounts exhibit a true and fair view of the state of affairs of the Board and in case he had called for any information or explanation from the Board or any past or present director, officer or other employee of the Board whether it has been given and whether it is satisfactory.

(5)

Without prejudice to anything contained in the preceding sub-sections, the Government may, at any time, appoint an auditor to examine and report upon the accounts of the Board and, any expenditure incurred by such auditor in connection with such examination and report, shall be payable by the Board.

40.

Previous sanction of Government for certain schemes, plans and works.

(1)

Except with the previous sanction of the Government, the Board shall not adopt or execute any scheme or plan in respect of water works or sewerage works or carry out any works in connection therewith, if the cost of such schemes, plans or other works exceeds or is likely to exceed-

(a)

one crore of rupees in the case of replacements, re-construction, structural alterations, adaptations, conversions, improved fixtures, fittings and machinery and other works of improvement not involving extensions, enlargements or additions to existing works or works previously in use; and

(b)

seventy-five lakhs of rupees in the case of new works including extensions, enlargements and additions to existing works or works previously in use.

(2)

[Notwithstanding anything contained in sub-section (1), the Board shall not, except with the previous sanction of the Government, adopt or execute any scheme or plan in respect of water works or sewerage works or carry out any work in connection therewith if the cost of such scheme, plan or other work is met or to be met with from the funds provided by the Government.]

[Substituted by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1992 (Tamil Nadu Act 6 of 1992).]

(3)

[Notwithstanding anything contained in sub-sections (1) and (2), the Board may, without the previous sanction of the Government,-

(a)

adopt or execute each of the component in any World Bank assisted projects, or other externally aided projects, for which the Government have accorded previous sanction for the total project costs;

(b)

adopt or execute any maintenance work in any scheme or plan in respect of water works or sewerage works irrespective of the cost of such maintenance works;

(c)

adopt or execute any scheme or plan with the assistance of any financial institution such as, Housing and Urban Development Corporation, where the fund is not routed through the Government;

(d)

sanction not exceeding two and half times of the Budget Estimate after deducting the value of the spill over in respect of Government assisted plan programmes under the [Chennai] Transmission and Distribution System.]

40A.

[* * *]

[Inserted by Madras Metropolitan Water-Supply and Sewerage (Amendment) Act, 1992 (Tamil Nadu Act 6 of 1992) and subsequently omitted by Chennai Metropolitan Water-Supply and Sewerage (Amendment) Act, 1996 (Tamil Nadu Act 35 of 1996).]

41.

Power to write off irrecoverable amounts.

- The Board may write off any amount or sum whatsoever due or payable to it, if, in its opinion, such amount or sum is irrecoverable:

Provided that the Board shall, before writing off such an amount exceeding twenty-five thousand rupees, obtain the sanction of the Government.

Chapter VI

Water Supply and Sewerage

Water-Supply

42.

Water supply system.

(1)

The Board shall provide or arrange for the provision of a sufficient supply of drinking water for consumption by the inhabitants of the Chennai Metropolitan Area.

(2)

The Board shall, as far as may be practicable, make adequate provision for securing that the water supplied for drinking purposes is at all times wholesome and fit for human consumption.

(3)

The Board may also provide or arrange for the provision of a sufficient supply of water for other domestic or non-domestic purposes except irrigation:

Provided that the water supplied under this sub-section may be different in quality to water supplied for drinking purposes.

(4)

The Board may regulate the hours, quantity and pressure of water supply.

(5)

No person shall use water supplied by the Board except as authorised by this Act or any regulation or other instrument made thereunder.

(6)

The Board shall furnish to the Government at such time as the Government may determine reports on the quality of the water supplied by it or available in the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Area.

43.

Supply of water to public authorities and payment therefor.

(1)

The Board may supply water to the Government, the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Port Trust, the Municipal Corporation of Chennai or any other public or local authority on such terms as to payment and as to the period and the conditions of supply as may be agreed upon.

(2)

The Board may, subject to the payment by an existing authority or other public authority of such charges as the Board may determine, provide gratuitous supply of wholesome water to the public within the Chennai

44.

Payments for water supplied under the Act and non-liability of the Board.

(1)

Except as otherwise provided in section 43, payment for water supply under this Act shall be made at such rates, which may be different-

(1)

for different areas;

(2)

for different types of consumers;

(3)

for different purposes;

as may be prescribed.

(2)

The Board shall not be liable to any penalty or damages for cutting off the supply of water, or for not supplying water, in the case of unusual drought, or other unavoidable cause or accident, replacements, extensions, or the necessity for relaying or repairing pipes.

45.

Water connections for domestic consumption and use.

(1)

The authorised authority shall, on the application by the owner or occupier of any building or premises, arrange to supply water thereto for domestic consumption and use if-

(a)

[* * *]

[Omitted by Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 1996 (Tamil Nadu Act 35 of 1996).]

(b)

the building or premises is within thirty metres of a main of the Board from which water can be supplied; and

(c)

the cost of all works necessary for that purpose shall be borne by the applicant:

Provided that the authorised authority may arrange for supply even if the building or premises is beyond thirty metres as aforesaid if the applicant agrees to bear all costs and expenses and if the supply is otherwise practicable.

(2)

Whenever it appears to the authorised authority that any building [assessed to property tax]

[Substituted for the expression 'assessed to an annual value of not less than three hundred rupees' by Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 1998 (Tamil Nadu Act 30 of 1998).]

is without a proper supply of water for domestic consumption and use and that such a supply can be furnished from a main not more than thirty metres distant from any part of such building, the authorised authority may by notice require the owner to obtain such supply and to execute all such works as may be necessary for that purpose at the cost of the owner.

(3)

It shall not be lawful for the owner of any dwelling house [each of which is assessed to property tax]

[Substituted for the expression 'the annual value of each of which is less than three hundred rupees' by Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 1998 (Tamil Nadu Act 30 of 1998).]

, to occupy it or cause or permit it to be occupied until he has obtained a certificate from the authorised authority that there is provision within or within a reasonable distance of the house for supply of wholesome water for domestic consumption and use of the inmates of the house.

(4)

Where on any land there are two or more superstructures, [each of which is assessed to property tax]

[Substituted for the expression 'the annual value of each of which is less than three hundred rupees' by Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 1998 (Tamil Nadu Act 30 of 1998).]

and the owner of the land is not the owner of all the superstructures, the authorised authority may, if it appears to it that the superstructures are without a proper supply of water for domestic consumption and use and that a supply can be furnished from a main not more than thirty metres distant from any part of any such superstructure, by notice, require the owner of the land to obtain such supply.

(5)

In any other case, where any premises are without supply of water for domestic consumption and use, the authorised authority may arrange for such supply on the application of the owner and at the owner's cost or he may, by written notice, require the owner to obtain such supply from the Board's main, and may for that purpose provide at the owner's cost such pipes, hydrants, standpipes or posts and other fittings.

(6)

The Board may, subject to such conditions as it may impose, supply water for any purpose other than irrigation or domestic consumption or use, on receiving a written application specifying the purpose for which such supply is required and the quantity likely to be consumed.

Explanation. - For the purposes of this Chapter-

(a)

supply of water for domestic consumption and use shall be deemed to include a supply-

(i)

for flushing latrines or house-sewers;

(ii)

for all bath other than swimming baths or public baths;

(iii)

for the consumption and use of inmates of hotels, boarding houses and residential clubs and for baths used by such inmates; or

(iv)

for the consumption or use of persons resorting to theatres and cinemas; and

(b)
supply of water for non-domestic consumption and use shall be deemed to include a supply-

- (i)
for any trade, manufacture or business,
- (ii)
for garden,
- (iii)
for building purposes,
- (iv)
for fountains, swimming baths, public baths or tanks or for any ornamental or mechanical purpose,
- (v)
for animals, when they are kept for sale or hire, or
- (vi)
for washing vehicles where they are kept for sale or hire.

46.

Control over house and other connections.

(1)

All house-connections, whether within or without the premises to which they belong, with the Board's water supply mains shall be under the control of the Board, but shall be altered, repaired and kept in proper order, at the expense of the owner of the premises to which they belong, or for the use of which they were constructed:

Provided that the expenses of such alteration, repair or maintenance outside the premises shall be borne by the Board.

(2)

All connections to the mains of the Board for water supply to premises, street hydrants including fire hydrants and places of public resort and all pipes, taps and other fittings used for such supply shall be made, maintained and regulated in such manner and at such charges or fees for connection or re-connection as may be prescribed.

47.

Calculation of charges for water supply.

(1)

For calculating the amount payable by the owner for consumption of water supplied by the Board, the Board may determine the quantity consumed on the basis of reading recorded by a meter installed in the premises.

(2)

Where so required by the Board, meters shall be installed by the owner of the premises concerned at his cost and for this purpose, the Board shall arrange to supply the meters:

Provided that where meter has already been installed prior to the commencement of this Act, the Board may discontinue the recovery of rent or charge therefor, and recover the value of the meter from the owner,

(3)

The readings of the meter indicating the quantity of consumption of water shall be presumed to be correct unless the contrary is proved.

(4)

Where meters are not provided to any premises, or the meters have e faulty or are not in working condition, the charges until the meters can be provided or until the meters are repaired or set right for consumption or use of water shall be such as may be prescribed.

(5)

If the owner of any premises having independent and private source of water supply is allowed by the Board to take sewerage service, he shall be liable to pay for such service, such amount and on such basis as may be prescribed.

48.

Prevention of wastage of water.

(1)

No owner or occupier of any premises to which water is supplied by the Board shall negligently or otherwise suffer such water to be wasted or shall suffer pipes, taps, works and fittings for the supply of water to remain out of repair so as to cause wastage of water.

(2)

No person shall cause wastage of water provided by the Board by the misuse of public stand-posts or pipes, drinking fountains or hydrants.

(3)

Whenever the authorised authority has reason to believe that as a result of defects in pipes, taps, or fittings connected with the water supply to any premises, water is being wasted, it may, by written notice, require the owner of the premises, within such period as may be specified in the notice to repair and make good the defects.

(4)

If such repairs are not effected within the time specified in the said notice, the authorised authority may cause such repairs to be made in order to stop wastage. The cost of such repairs shall be recovered from the owner of the premises as if it were an arrear of tax, rate or charge provided under this Act.

49.

Power to cut off water supply.

(1)

Notwithstanding anything contained in this Act, the authorised authority may cut off the connection between any waterworks of the Board and any premises to which water is supplied from such works or may turn off such supply in any of the following cases, namely:-

(a)

if the premises are unoccupied;

(b)

if after receipt of written notice from the authorised authority requiring him to refrain from so doing, the owner or occupier of the premises continues to use water or to permit the same to be used in contravention of this Act or any other law or any regulation or other instrument made thereunder;

(c)

if the owner or occupier refuses to admit any authorised authority into the premises for the purposes of making any inspection relating to water supply or sewerage service, or prevents such authority from making such inspection;

(d)

if the owner or occupier of the premises fails to fix or prevents the fixing of a meter as required by or under the provisions of this Act, or wilfully or negligently injures or damages the meter or otherwise interferes with any pipe or tap or main or other work conveying water from any works of the Board;

(e)

if any pipes, taps, works or fittings connected with the supply of water to the premises be found on examination to be out of repair to such an extent as to cause such wastage of water that immediate prevention is necessary;

(f)

if by reason of a leakage in the service pipe or fittings, damage is caused to a public street and immediate prevention is necessary;

(g)

if there is any water-pipe situated within the premises to which no tap or other efficient means of turning off the water is attached;

(h)

if house sewers are maintained without conforming to the provisions of this Act, or such sewers are not contracted or maintained, when required under this Act;

(i)

if the owner or occupier fails to pay within due time any money due to the Board under this Act, or any regulation or other instruments made thereunder;

(j)

if there is any default in complying with any requisition made under this Act, or of any provision of this Act or any instrument made thereunder is contravened:

Provided that except in the case, where by reason of any of the circumstances referred to in clauses (d) to (g), there is risk of contamination of water, the authorised authority shall not cut off such connection or turn off such supply, unless notice of not less than twenty-four hours has been given to the owner or the occupier of the premises, as the case may

be.

(2)

No action taken under or in pursuance of this section shall relieve any person from any penalties or liabilities which he may otherwise have incurred.

(3)

The expense of cutting off the connection or turning off the water supply and of restoring the same determined by the authorised authority in any case referred to in sub-section (1) shall be paid by the owner or occupier of the premises: Provided that no charge for such expense shall be made in the case mentioned in clause (a) of the said sub-section.

(4)

In cases where water supply has been cut off pursuant to clause (i) of subsection (1), the authorised authority shall restore the water supply as before as soon as all money due, together with the expenses referred to in sub-section (3), have been paid by the owner or occupier.

(5)

Where the authorised authority has cut off or has issued any notice to cut off water supply to any premises under this section, no Court or other authority shall issue any order or direction in the nature of injunction, stay or otherwise except after giving a reasonable opportunity to the Board of being heard.

50.

Control over wells, etc.

(1)

No person shall construct, re-construct, drill, repair or alter any well, pond, tank, cistern intended for drinking purposes without the permission of the authorised authority and the maintenance thereof shall be regulated in such manner as the Board may determine, including the dimensions of the well, pond or tank or a cistern, the manner of enclosing it, and the means which shall be used to prevent pollution of the water.

(2)

Without prejudice to the provisions of sub-section (1), the provisions of sections 234, 235, 236, 242, 243, 244 and 245 of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

City Municipal Corporation Act, 1919 (Tamil Nadu Act IV of 1919) shall, so far as may be, apply to wells in the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area:

Provided that references in those sections to the Commissioner shall be construed as references to the authorised authority.

51.

Control over use, etc., of underground water in certain cases.

(1)

Save as otherwise provided in section 50, the Board may, in the public interest and with the previous sanction of the Government, regulate, control and charge for existing or future extraction, conservation and use of underground water in any form for purposes other than irrigation, in the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area.

(2)

Any person desiring to sink a well or a tube well or to continue existing use of underground water in the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area for any purpose other than irrigation shall apply to the Board for the grant of a licence for the purpose and shall not proceed with any activity connected with such sinking or continue such existing use unless a licence has been granted by the Board.

(3)

Every application under sub-section (2) shall be made in such form and in such manner and shall contain such particulars as may be prescribed.

(4)

On receipt of an application under sub-section (1) if the Board is satisfied that it shall be in the public interest so to do, it

may grant, subject to the payment of such fees as may be prescribed and subject to such conditions and restrictions as may be specified, a licence authorising the abstraction and use of the ground water:

Provided that no person shall be refused a licence unless he has been given an opportunity of being heard.

(5)

In granting or refusing a licence under sub-section (2), the Board shall have regard to-

(a)

the purpose or purposes for which ground water is to be used;

(b)

the existence of other competitive users;

(c)

the availability of ground water;

(d)

the effect on other sources of water supply;

(e)

the compatibility with existing water supply system;

(f)

availability of factors controlling or preventing pollution.

(6)

The licence shall be in such form as may be prescribed.

52.

Power to order cleansing of insanitary private water-course, spring, tank, well etc., used for drinking.

(1)

The authorised authority may, by notice, require the owner or person having control over, any private water-course, spring, tank, well or other place the water of which is used for drinking purposes to keep the same in good repair, to cleanse it in such manner as the authorised authority may direct and to protect it from pollution caused by surface drainage or other matter in such manner as may be provided in the notice.

(2)

If the water of any private tank, well, or other place which is used for drinking is proved to the satisfaction of the authorised authority to be unfit for that purpose, the authorised authority may, by notice, require the owner or person having control thereof to-

(a)

refrain from using or permitting the use of such water for drinking, or

(b)

close or fill up such place or enclose it with substantial wall or fence.

(3)

In default of compliance with a notice under sub-section (1) or sub-section (2), the authorised authority shall carry out the work or any other thing to be done thereunder and recover the cost from the owner or the person having control and the amount thereto shall be recoverable as if it were an arrear of tax, under this Act.

53.

Prohibition of building over water mains.

(1)

Without the permission of the authorised authority, no building, wall or other structures shall be newly erected and no street shall be constructed over any Board's water main.

(2)

If any building, wall or other structure be so erected or any street be so constructed, the authorised authority may, with the approval of the Board, cause the same to be removed or otherwise dealt with as it shall appear fit and the expenses thereby incurred shall be paid by the person contravening the provisions of sub-section (1).

(3)

Nothing in this section shall apply to the Central Government.

54.

Prevention of pollution.

- It shall not be lawful for any person to,-

(a)

bathe in any tank, reservoir, conduit, fountain, well or other place set apart by the Board, or by the owner thereof, for drinking purposes;

(b)

wash or cause any animal or thing to be washed in any such place;

(c)

throw, put or cause to enter into the water in any such place any animal, or thing whereby the water may be fouled or polluted;

(d)

cause or allow to drain into or upon any such place or cause or suffer anything to be brought there into or do anything whereby the water may be fouled or polluted; or

(e)

do, or cause to be done, anything which fails to comply with such , requirement as may be prescribed for the purpose of preventing any pollution in the vicinity of any source of water supply used for purposes of drinking, bathing or washing clothes.

Sewerage

55.

Sewerage system.

(1)

As far as practicable, the Board shall construct and maintain sewers and provide safe and sufficient system of sewers in or for the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area, for the purpose of effectual discharge of sewerage of the said Area.

(2)

The power of the Board under sub-section (1) shall include the power to-

(a)

enlarge, arch-over or otherwise improve any of its sewers; or

(b)

discontinue, close, or destroy any of its sewers which has in its opinion become useless or unnecessary; or

(c)

construct any new sewer in the place of an existing sewer in any land wherein any of its sewers has already been lawfully constructed or repair or alter any sewer so constructed.

56.

Sewer connections.

(1)

The authorised authority shall, on the application of the owner or occupier of any premises or the owner of a private street, arrange for the applicant's house-sewer or other sewer in the private street to empty into a sewer of the Board if-

(a)

[* * *]

[Omitted by Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 1996 (Tamil Nadu Act 35 of 1996).]

(b)

there is a sewer of the Board within thirty metres of the nearest point from such premises or property;

(c)

the owner or occupier agrees to bear all cost and expenses of the work and materials necessary for that purpose; and

(d)

the owner or occupier complies with such conditions and requirements as may be prescribed.

(2)

If there is a public sewer or other place set apart by the Board for the discharge of the sewage within a distance not exceeding thirty metres of the nearest point on any premises, or if within such distance, a Board's sewer or other place for the discharge of sewage is about to be provided or is in the process of construction, the authorised authority may-

(a)

by notice, direct the owner of the said premises to construct a sewer leading therefrom to such sewer or place and to execute all such works as may be necessary at such owner's expense, or

(b)

cause to be constructed a sewer leading from the said premises to such Board's sewer or place and cause to be executed all such works as may be necessary:

Provided that -

(i)

not less than fifteen days before constructing any sewer or executing any work under clause (b), the authorised authority shall give notice to the owner of the nature of the intended work and the estimated expenses recoverable from the owner; and

(ii)

the expenses incurred by the authorised authority in constructing any sewer or executing any work under clause (b) shall be recoverable from the owner in such instalments as the Board may deem fit and recoverable in the same manner as tax under this Act.

(3)

If any premises is, in the opinion of the authorised authority without sufficient means of effectual sewerage, but no part thereof is situated within thirty metres of a Board's sewer or other place set apart by the Board for the discharge of sewage, the authorised authority may, by notice, direct the owner of the said premises to construct a closed cess-pool (or other sewage disposal plant) of such material, dimensions and description in such position and at such level as the authorised authority thinks necessary and to construct a sewer or sewers emptying into such cess-pool and to execute all such works as may be necessary.

(4)

It shall not be lawful for the owner of any building to occupy it or cause or permit it to be occupied until he has obtained a certificate from the authorised authority that the said building is provided with such means of sewerage as appear to the authorised authority to be sufficient.

57.

Power to provide sewers in combination.

(1)

When the authorised authority is of opinion that any group or block of premises any part of which is situated within thirty metres of a Board's sewer already existing (or about to be provided or in the process of construction), may be provided with sewer more economically or advantageously in combination than separately, the authorised authority may, with the approval of the Board cause such group or block or premises to be so provided by such method as appears to the authorised authority to be best suited therefor and the expenses incurred by the authorised authority in so doing shall be paid by the owners in such proportions as the Board may deem fit and shall be recoverable in the same manner as tax, under this Act.

(2)

Not less than fifteen days before any work under this section is commenced, the authorised authority shall give written notice to the owners, of-

(a)

the nature of the intended work;

(b)

the estimated expenses thereof; and

(c)

the proportion of such expenses payable by each owner.

(3)

The owners for the time being of the several premises constituting a group or block provided with sewers under sub-section (1) shall be the joint owners of every sewer constructed, erected or fixed, or continued for the special use and benefit only of such premises and shall, in the proportion in which it is determined that they are to contribute to the expenses incurred by the authorised authority under sub-section (1), be responsible for the expenses of maintaining every such sewer in good repair and efficient condition.

58.

Power to close or limit the use of existing private sewers.

(1)

Where a sewer connecting any premises with a Board's sewer or other place set apart by the Board for the discharge of sewage is sufficient and is otherwise unobjectionable, but is not, in the opinion of the authorised authority adopted to the general sewerage system of the area, or of the part of the area in which such sewer is situated, the authorised authority with the approval of the Board, may-

(a)

subject to the provisions of sub-section (2) close, discontinue or destroy the said sewer and do any work necessary for that purpose; or

(b)

direct that such sewer shall, be used for sewage only, or for water unpolluted with sewage only, and may construct at the cost of the Board an entirely distinct drain either for water unpolluted with sewage or for sewage.

(2)

No sewer may be closed, discontinued or destroyed, by the authorised authority under clauses (a) and (b) of sub-section (1) except on condition of his providing another sewer as effectual for the premises and communicating with a Board's sewer or other place aforesaid and the expense of the construction of any sewer so provided by the authorised authority and of any work done shall be paid by the Board.

59.

Control over house-sewers, privies and cess-pools.

(1)

All house-sewers, whether within or without the premises to which they belong, and all septic tanks, cess-pools within the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area shall be under the control of the Board, but shall be altered, repaired and kept in proper order at the expense of the owner of the premises to which the same belong or for the use of which they were constructed.

(2)

Where the owner or occupier has failed to pay any tax, rate or charge for sewerage or to pay any sums due under sub-section (5) of section 47, or under section 56 or 57, the authorised authority may, after giving written notice of fifteen days to such owner or occupier, disconnect any sewer so as not to permit such sewer to empty into the Board's sewer.

60.

Closure, removal, etc., of works in certain cases.

(1)

If any house-sewer, ventilation shaft or pipe, cess-pool, house-gully, privy, urinal or bathing or washing place in any premises is found on examination and inspection by the authorised authority to be not in good order or condition, or constructed in contravention of any of the provisions of this Act or any regulation or instrument made thereunder, the authorised authority may, by written notice, require the owner of the premises-

(a)

to close or remove the same or any encroachment thereupon; or

(b)

to renew, repair, cover, recover, trap, ventilate, pave and pitch, flush or cleanse or take such other action as it may think necessary in this regard.

(2)

In any such case, the authorised authority may, forthwith and without notice,-

(a)

close or demolish any house-sewer by which sewage, offensive matter or polluted water is carried through, from, into, or upon any premises in contravention of any of the provisions of this Act or any regulation or instrument made thereunder; or

(b)

clear, cleanse, or open out any house-sewer which is choked, blocked, or in any way obstructed, and all expenses incurred in so doing shall be paid by the owner or the occupier of the premises.

61.

Sewers, etc., to conform to regulations.

(1)

Sewers, septic tanks, cess-pools, privies and urinals and all appurtenances thereof shall be constructed, maintained, repaired, altered and regulated in accordance with such requirements as to sewerage as may be prescribed.

(2)

No owner or occupier shall allow the water of any sink, drain or latrine or drainage from any stable, or place, or any other filth to run down on, or to or be put upon, any street, or into any sewer in or along side of any street except in such manner as shall prevent any avoidable nuisance from any such filth soaking into the walls or ground at the side of the said sewer.

General

62.

Obligations of owner and occupier.

(1)

When under the provisions of this Act, the owner of any premises may be required to carry out any work, the occupier of the said premises may be required, instead, to carry out such work and the occupier shall be bound to comply with the requirement:

Provided that except in the case of a special agreement to the contrary, such occupier may deduct the amount of the expenses reasonably incurred or paid by him in carrying out such work from the rent or any other amount payable by him to the owner or may recover the same from the owner by moving the Court of competent jurisdiction.

(2)

The owner and occupier of the premises shall be jointly and severally liable for payment of all the sums referred to in sections 44,45,46,47,48,49, 56 and 57.

63.

Board's power to carry pipes, sewers, etc., and to maintain works.

- The Board or the authorised authority may carry any pipe, main, sewer or channel of any kind to establish or maintain any system of water supply or sewerage, through, across, undercover or up the side of any land or building, and may place and maintain contrivances to support pipes, mains, sewers and channels, and may do all acts necessary or expedient for repairing or maintaining any such pipe, main, sewer or channel or contrivances in an effective manner for the purpose for which it is intended to be used or for removing the same:

Provided that such work shall be done so as to cause the least practicable nuisance or inconvenience to any person:

Provided further that the Board shall pay compensation to any person who sustains damage by the exercise of such power.

64.

Work beyond the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Area.

- The Board may, in the execution and for the purposes of any works beyond the limits of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area, exercise all the power which it may exercise within that area throughout the line of territory through which conduits, channels, pipes, works and the like run or are situated, and over any lake, reservoir or other source from which a supply of water for the use of that area is derived, and over all lands at a distance not exceeding one kilometre beyond the high water level of any such lake or reservoir, and over any lands used for sewage farms, sewage disposal tanks, filters and other works connected with the sewerage of that area.

65.

Vesting of materials in pipes, sewers, etc., and Board's power to dispose of the same.

- All things or materials in, or caused to be carried into or by, the Board's mains, pipes, or sewers, as the case may be, shall be the property of the Board and it shall be lawful for the Board to treat or reclaim such things or materials and to put to use or dispose off, the same, as so treated or reclaimed or otherwise, in such manner as it may deem fit.

66.

Power to carry out works, remove encroachments, sell unclaimed materials, etc.

(1)

It shall be lawful for the Board-

(i)

to carry out any work required to be carried out under this Act or any regulation or other instrument made thereunder, which the owner or occupier or other person responsible therefor has failed to carry out and recover the cost and expenses therefor from the owner or occupier;

(ii)

to remove any material, construction, obstruction or encroachment which is deposited or made in contravention of any provision of this Act or any regulation or other instrument made thereunder;

(iii)

to clear materials, trees, shrubs, plants and other things which have been taken down or cut pursuant to any provision of this Act or any regulation or other instrument made thereunder;

(iv)

to treat any unauthorised encroachment on Board's land as encroachment on Government land and have, such encroachment removed, and any person causing the encroachment evicted under the Tamil Nadu Land Encroachments Act, 1905 (Tamil Nadu Act III of 1905) and the

(d)

ascertaining whether there has been any contravention of any provisions of this Act or any regulations or instrument made thereunder;

(e)

making any inquiry, inspection, examination, measurement, valuation or survey authorised or required by or under this Act, or necessary for the proper administration of this Act; or

(f)

generally for discharging efficiently the functions entrusted to the Board under this Act.

(3)

The Board shall not acquire any title to, or any right other than user, to the land, building or immovable property (other than property belonging to the Board) in respect of which any action has been taken under this section, and before commencing any action under this section, the authorised authority shall except in the case of an emergency give not less than twenty-four hours notice in writing of its intention to do so to the owner or occupier:

Provided that the authorised authority shall, except in the case of an emergency, obtain the prior permission of the authority concerned where the land, building, or immovable property is owned by, and is in the possession of, such authority.

(4)

While exercising any power conferred under this section, the authorised authority shall cause as little damage as possible to any property and the Board shall pay compensation to all persons interested in any such property for any damage sustained by them in consequence of the exercise of such power.

68.

Works to be done by licensed plumber.

(1)

Except as otherwise permitted by the Board, no person other than a licensed plumber shall execute any work under this Act and no person shall permit any such work to be executed except by a licensed plumber.

(2)

The Board shall prescribe the manner, the principles and procedure for licensing of plumbers, charges to be levied for any work done by them, the guidelines to be followed by them, the cancellation of licences and for all matters connected with plumbing.

69.

Prohibition of certain acts.

- No person shall-

(a)

obstruct any person including any contractor, contractor's workman and any agent of the Board, in the discharge of the duties imposed by or under this Act;

- (b) obstruct, impede, impair or tamper or interfere or cause any damage or injury to or with any water-works or sewerage works or any meter, apparatus or appliance, including the flow of any water or sewage;
- (c) take or utilise any water except as authorised by or under this Act;
- (d) occupy or cause or permit to be occupied, any dwelling house or premises not provided with or having no access to adequate supply of wholesome water;
- (e) occupy, or cause or permit to be occupied, any building or premises not having sufficient means of sewerage;
- (f) discharge any sewage except as authorised by or under this Act;
- (g) pull up or remove any pillar, post or stake or mark placed under the authority of the Board;
- (h) trespass or enter on land vested in the Board along which a conduit, main or pipe runs, and on any premises connected with water supply and sewage except with the permission of the authorised authority;
- (i) erect or place any fence or building or other structure over any pipes or mains belonging to the Board or under, in or across any sewer belonging to the Board.

Chapter VII

Tribunal, Appeals and Revision

70.

Constitution of Tribunal.

- (1) The Government may constitute a Tribunal for the purposes of this
- (2) The Tribunal shall consist of one person who shall be a judicial officer not below the rank of Subordinate Judge.
- (3) The Tribunal shall have the same powers as are vested in a Civil Court under the Code of Civil Procedure, 1908 (Central Act V of 1908).
- (4) The Tribunal may, with the previous sanction of the Government, appoint such officers and servants as it considers necessary for carrying on its business and the remuneration and other conditions of service of such officers and servants shall be determined by the Government.
- (5) The Tribunal shall have the power to regulate its own procedure in respect of the making, hearing and conducting the appeals referred to in subsection (1) of section 71.

71.

Appeals.

- (1) Any person aggrieved by any decision or determination-
 - (i) fixing the rate of water tax or sewerage tax or demanding the payment of such tax under the provisions of this Act; or
 - (ii) [***]
[The expression 'and the Annual Valuation shall be assessed under section 35' omitted by Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 1998 (Tamil Nadu Act 30 of 1998).]
 - (iii) refusing a licence under section 51, may within thirty days from the date of communication of such decision, determination, levy or notice prefer an appeal to the Tribunal.

(2)

In disposing of an appeal, the Tribunal may, after giving the appellant an opportunity of making his representations, confirm or reduce or annul the rates of tax [* * *]

[The expression 'and the Annual Valuation shall be assessed under section 35' omitted by Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 1998 (Tamil Nadu Act 30 of 1998).]

or confirm the refusal or direct the grant of a licence, or pass such other orders, including consequential orders, as it may deem fit.

72.

When appeals can be heard and finality of rates, etc.

(1)

No appeal against the levy or demand of water tax or sewerage tax shall be heard by the Tribunal unless the water tax or sewerage tax as fixed or demanded and due by the applicant has been paid to the Board.

(2)

Unless and until altered on appeal, the water tax and sewerage tax shall be as determined by the Board [* * *]

[The expression 'and the Annual Valuation shall be assessed under section 35' omitted by Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 1998 (Tamil Nadu Act 30 of 1998).]

.

(3)

[The amount]

[Substituted for the expression 'the Annual Value fixed under section 35 against which no appeal has been made under this Act and this amount' by Chennai Metropolitan Water Supply and Sewerage (Amendment) Act, 1998 (Tamil Nadu Act 30 of 1998).]

of every sum claimed from any person under this Act on account of any tax against which no appeal has been preferred under this Act, and the decision of the Tribunal upon any appeal under this Act, shall be final and shall not be called in question in any Court of law.

73.

Revision.

- The Board may call for the records of any proceedings of, or other action taken by, the authorised authority, for the purpose of satisfying itself as to the legality or propriety of any order or proceeding or other action and may pass such orders as it may deem fit.

Chapter VIII

Miscellaneous

74.

Board's dues to be recovered as arrears of land revenue.

- Any sum due to the Board on account of any tax, rate, charge, cost, expenses, fee, rent or on any other account under this Act or any regulation or other instrument made thereunder may, without prejudice to any other mode of recovery, be recovered from any person from whom such sum is due,-

(a)

as if it were an arrear of land revenue; or

(b)

on application to any Judicial Magistrate of the first class or Metropolitan Magistrate, by such Magistrate as if it were a fine imposed by him.

75.

Duties of authorities, etc., to assist the Board.

(1)

All public and local authorities or institutions shall render such help and assistance and furnish such information to the Board as the Board may require for carrying out its purposes and shall make available to the Board for inspection and examination such records, maps, plans, assessment rolls and other documents as may be necessary for the discharge of its functions and on payment of such fees as may be fixed by the Government.

(2)

It shall be the duty of all police officers and employees of the Board to give immediate information to the authorised

authority about the commission of, or the attempt to commit, any contravention of this Act or any regulation or other instrument made thereunder and to assist the authorised authority in the exercise of its lawful authority.

76.

Directors, etc., to be deemed public servants.

(1)

All directors, officers and employees of the Board shall be deemed, when acting or purporting to act in pursuance of the provisions of this Act or any regulations or instrument made thereunder, to be public servants within the meaning of section 21 of the Indian Penal Code (Central Act XLV of 1860).

(2)

The words "State Government" and "Government" in section 161 of the Indian Penal Code (Central Act XLV of 1860) shall, for the purposes of sub-section (1), be deemed to include the Board.

77.

Offences and penalties.

- Whoever contravenes any of the provisions of this Act or of any regulation or other instrument made thereunder shall be punishable with imprisonment which may extend to six months or with fine which may extend to one thousand rupees or with both and in addition, in the case of a continuing contravention, with additional fine which may extend to fifty rupees for every day during which such contravention continues after conviction for the first such contravention.

78.

Offences by companies.

(1)

Where an offence against any of the provisions of this Act or any rule made thereunder has been committed by a company, every person who, at the time of the offence was committed, was in charge of, and was responsible to, the company for the conduct of the business of the company as well as the company shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that nothing contained in this sub-section shall render any such person liable to any punishment, if he proves that the offence was committed without his knowledge or that he had exercised all due diligence to prevent the commission of such offence.

(2)

Notwithstanding anything contained in sub-section (1), where any such offence has been committed by a company and it is proved that the offence has been committed with the consent or connivance of, or is attributable to, any neglect on the part of, any director, manager, secretary or other officer of the company, such director, manager, secretary or other officer, shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation. - For the purposes of this section,-

(a)

"company" means any body corporate and includes a firm, society or other association of individuals; and

(b)

"director" in relation to-

(i)

a firm, means a partner in the firm;

(ii)

a society or other association of individuals, means the person who is entrusted under the rules of the society or other association, with the management of the affairs of the society or other association, as the case may be.

78A.

[Removal of disqualification.

[Inserted by Madras Metropolitan Water Supply and Sewerage (Amendment) Act, 1985 (Tamil Nadu Act 16 of 1985).]

- No person shall be disqualified for being chosen as, or for being, a member of the Legislative Assembly or of the [Legislative Council]

[Added by Chennai Metropolitan Water Supply and Sewerage (Third Amendment) Act, 1998 (Tamil Nadu Act 50 of 1998).]

by reason only of the fact that he is a Chairman or a director of the Board.]

78B.

Power of Government to issue orders and directions to the Board or local authorities.

- The Government may issue to the Board or to the local authority concerned, such orders and directions as in their opinion are necessary or expedient for carrying out the purposes of this Act and the Board or such local authority, as the case may be, shall give effect to all such orders and directions.

79.

Power to remove difficulties.

- If any difficulty arises in giving effect to the provisions of this Act, the Government may, by notification, make such provision, not inconsistent with the provisions of this Act as may appear to them to be necessary or expedient for removing the difficulty:

Provided that no such notification shall be issued after the expiry of one year from the date of establishment of the Board under section 3.

80.

Power to make rules.

- The Government may make rules to carry out the purposes of this Act.

81.

Power to make regulations.

(1)

The Board may make regulations not inconsistent with this Act for carrying out the purposes of this Act.

(2)

In particular and without prejudice to the generality of foregoing power, such regulations may provide for all or any of the following matters, namely:-

(a)

the time and place of the meeting of the Board or of any committee and the procedure to be followed at such meetings including the quorum necessary for the transaction of business;

(b)

the functions and duties of the committees and whole-time directors and the delegation of powers to committees, directors, officers and other employees of the Board;

(c)

the method of recruitment, the qualifications, the pay, the duties and other terms and conditions of service of officers and employees, and the constitution and management of provident fund and other superannuation funds;

(d)

the provision of an official seal of the Board and the manner and effect of its use;

(e)

the manner and form in which contracts binding on the Board may be executed;

(f)

the relations of the Board with the local and public authorities;

(g)

the date by which, the form and the manner in which the Board's budgets, balance sheet and income and expenditure account and other accounts shall be prepared and the information to be contained in such budgets and accounts;

(h)

the conditions subject to which the Board may borrow moneys, grant loans or advances, or invest its funds which are not for the time being required for the transaction of its business;

(i)

provision of such funds and reserve as may be required;

(j)

the manner of, and the basis on which, taxes shall be levied, the manner of and determining consumption of water, the charges therefor, the rent or other amount of charge for meters, and the time, place and manner of payment of taxes, rates, charges and surcharges, fees, rents and other amounts;

(jj)

[the manner of, and the basis of which, the infrastructure development charges shall be collected;]

[Inserted by Chennai Metropolitan Water Supply and Sewerage (Second Amendment) Act, 1993 (Tamil Nadu Act 49 of 1998).]

(k)

making, maintaining and regulating connections for the supply of water and fees for connection and re-connection;

(l)

the terms and amount payable for connection of house-sewers, for construction, maintenance, and repairs and alteration of sewers or joint or common connections of sewers, and the basis of levying the charge for providing for sewerage service without water-supply;

(m)

matters to be complied with in relation to the sanction of building plans or other plans or other plans or schemes containing provision for water-supply or sewerage;

(n)

the conditions and requirements for extraction and use of underground water, regulation and control of wells, including tube wells, and the principles or criteria and the procedure, for grant of permit to sink a well or tube well;

(o)

the manner of treatment of trade effluents and to regulate the discharge thereof;

(p)

generally the efficient conduct of the affairs of the Board: Provided that in making regulations regarding any of the matters specified in clauses [(f), (h), and (n)]

[Substituted for the expression '(f), (h), (j), (k), (l), and (m)' by Chennai Metropolitan Water Supply Sewerage (Amendment) Act, 1997 (Tamil Nadu Act 56 of 1997).]

, the previous sanction of the Government shall be obtained.

82.

Application of certain provisions of Tamil Nadu Act 4 of 1971.

- The provisions of sections 52, 53, 54 and sub-section (1) of section 57 and sections 59, 60, 62, 63, 64, 66 and 67 of the Tamil Nadu Water Supply and Drainage Board Act, 1970 (Tamil Nadu Act 4 of 1971), shall as far as may be, apply to or in relation to the Board, its functions, affairs and activities, as they apply to or in relation to the Tamil Nadu Water Supply and Drainage Board, its functions, affairs and activities.

83.

Application of certain provisions of Tamil Nadu Act III of 1939.

(1)

The Board shall be deemed to be a local authority or urban local authority for purposes of sections 17 to 21, 24, 27 to 30 of the Tamil Nadu Public Health Act, 1939 (Tamil Nadu Act III of 1939):

Provided that any power that may be exercised by the Government, the Collector or any other officer under those sections in relation to anything to be done by or affecting the Board shall be exercised only by such officer as may be specially designated in that behalf by the Government.

(2)

The Municipal Corporation of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

or any other existing authority being a municipal council or a township committee or a panchayat union council or a panchayat in the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area shall not, with effect from the relevant notified date, be regarded as a local authority or an urban local authority for purposes of carrying out any function or obligation imposed or any power conferred under Chapters III and IV of the Tamil Nadu Public Health Act, 1939 (Tamil Nadu Act III of 1939).

(3)

With effect from the notified date in relation to the Municipal Corporation of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

, the words "water and" where they occur for the first time in sub-section (5) of section 25 of the Tamil Nadu Public Health Act, 1939 (Tamil Nadu Act III of 1939) shall be omitted.

84.

Effect of other laws.

(1)

Save as otherwise provided in this Act or in any notification issued by the Government under section 85, no existing authority shall, notwithstanding any law governing its constitution or establishment, have any function or power in respect of water-supply and sewerage service in or for the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area or any matter relating to which such function or power has been entrusted to the Board under this Act.

(2)

Without prejudice to the generality of the foregoing provision, any existing authority being the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Municipal Corporation or a municipal council, township committee, panchayat union council or panchayat constituted or established under the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

City Municipal Corporation Act, 1919 (Tamil Nadu Act IV of 1919), the Tamil Nadu District Municipalities Act, 1920 (Tamil Nadu Act V of 1920), [Tamil Nadu Panchayat Act, 1958 (Tamil Nadu Act XXXV of 1958)]

[This Act has been repealed and re-enacted as the Tamil Nadu Panchayats Act, 1994 (Tamil Nadu Act 21 of 1994).]

shall cease to have jurisdiction in respect of water supply or sewerage services in or for the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area with effect from the notified date and shall not-

(a)

have any right, title or claim to any water works or sewerage works intended or maintained exclusively for the purpose of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area;

(b)

have any power, function or responsibility for providing water-supply or sewerage service for that area or undertake or require any construction or other work in connection therewith except as otherwise provided in this Act;

(c)

sanction any scheme, plan or works of improvement or development including building regulations or provisions regulating or controlling factories, dairies, slums, cheris, hutting grounds or markets for water-supply or sewerage in the said area;

(d)

regulate or control the use, construction, re-construction, repair and closure of wells, ponds and tanks, except insofar as such regulation or control relates to the avoidance of injury or danger to the public, to nuisance or insanitary conditions or to the protection of public health;

(e)

have any power or duty in respect of offences and penalties therefor insofar as they relate to any matter connected with water-supply and sewerage;

(f)

have any power to levy or collect any water-tax except as otherwise provided in this Act;

(g)

have any power or function in respect of the framing of any rule, regulation or bye-law regarding any of the matters referred to in this section.

(3)

The provisions of this Act or any regulation or other instrument made thereunder shall have effect notwithstanding anything to the contrary contained in any other law for the time being in force or any contract, custom or usage.

85.

Amendments to other enactments and savings.

(1)

(a)

On and from the date appointed under sub-section (1) of section 26, the enactments specified in Parts I to III of the

Schedule shall be amended in the manner directed therein in respect of an area which forms part of, or the whole area over which the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

City Municipal Corporation, a municipal council, a town panchayat or village panchayat, or a township committee constituted under any law for the time being in force, as the case may be, has jurisdiction and the provisions of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

City Municipal Corporation Act, 1919 (Tamil Nadu Act IV of 1919), the Tamil Nadu District Municipalities Act, 1920 (Tamil Nadu Act V of 1920) or the [Tamil Nadu Panchayats Act, 1958 (Tamil Nadu Act XXXV of 1958)]

[This Act has been repealed and re-enacted as the Tamil Nadu Panchayats Act, 1994 (Tamil Nadu Act 21 of 1994).]

, as the case may be, shall continue to apply to such area subject to the notifications specified in Part I, II or III of the Schedule, as the case may be.

(b)

The enactments specified in Parts IV to VII of the Schedule shall be amended in the manner directed therein with effect from such date as the Government may, by notification, appoint in this behalf.

(2)

Notwithstanding the amendments specified in the Schedule to this Act and any other provision of this Act, an existing authority shall continue to have all the powers it had before the notified date applicable to it, for the purpose of recovering from any person any arrears of water tax or other rate relating to water-supply whether such tax or rate is payable as part of property tax or otherwise, or any other dues pertaining to water-supply or sewerage payable by such person in respect of anything done relating to the period prior to such notified date.

(3)

The existing authority concerned shall be responsible for recovering the arrears and other dues referred to in sub-section (2) as expeditiously as practicable and shall pay over the amounts so recovered to the Board after deducting therefrom such collection charges as may be mutually agreed between the Board and the existing authority.

86.

Service how to be effected.

- When any notice, bill or other document is required by or under this Act or regulation made thereunder to be served upon, or presented to any person, such service, or presentation shall be effected-

(a)

by giving or tendering the said document to such person; or

(b)

if such person is not found, by leaving such document at his last known place of abode, or by giving or tendering the same to some adult member or servant of his family; or

(c)

if his address elsewhere is known, by forwarding such document to him by registered post under a cover bearing the said address; or

(d)

if none of the means aforesaid is available, by causing a copy of such document to be affixed on some conspicuous part of the land or building, if any, to which the document relates.

87.

Application of Act on extension of [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area If on any date after the commencement of this Act, the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

.

- Metropolitan Area as at such commencement is extended by the addition of territories, the provisions of sections 25 to 30 shall with effect from such date, apply mutatis mutandis in the territories so added and in respect of all matters covered by those sections and the other provisions of this Act shall apply accordingly:

[Provided that all taxes, fees and duties, in respect of water supply and sewerage services as levied by the local authority concerned before the date of the such extension, shall be deemed to have been levied by the Board under the

provisions of this Act and shall continue to be in force accordingly, until such taxes, fees and duties are revised, cancelled or superseded by anything done or any action taken under this Act.]

[Inserted by Act No. 8 of 2012, dated 23.02.2012, w.e.f. 25.10.2012.]

88.

Rules and notifications to be placed before the Legislature.

(1)

(a)

All rules made under this Act shall be published in the Tamil Nadu Government Gazette and unless they are expressed to come into force on a particular day shall come into force on the day on which they are so published.

(b)

All notifications issued under this Act shall, unless they are expressed to come into force on a particular day, come into force on the day on which they are published.

(2)

Every rule or notification made or issued under this Act shall, as soon as possible after it is made or issued, be placed on the table of [the Legislative Assembly]

[Substituted for 'both Houses of the Legislature' by the Tamil Nadu Adaptation of Laws Order, 1987.]

and if before the expiry of the session in which it is so placed or the next session, [the Legislative Assembly agrees]

[Substituted for 'both Houses of the Legislature' by the Tamil Nadu Adaptation of Laws Order, 1987.]

in making any modification in such rule or notification or [the Legislative Assembly agrees]

[Substituted for the words 'both Houses agree' by the Tamil Nadu Adaptation of Laws Order, 1987.]

that the rules or notification should not be made or issued, the rule or notification shall, thereafter, have effect only in such modified form or be of no effect, as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule or notification.

The Schedule

(See Section 85)

Part I ? In the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

City Municipal Corporation Act, 1919 (Tamil Nadu Act IV of 1919),-

(1)

sections 163 to 173, 177 to 181, 262, 268 and 350 shall be omitted;

(2)

in section 3, after clause (10), the following clause shall be inserted, namely:-

"(10-A) drain' means a rain or storm water drain and water tables, chutes and the side drain exclusively meant to drain away the rain water falling on the surface of any street, bridge or causeway, but does not include a drain or sewer within the meaning of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Water-Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

);

(3)

in section 16, the word, figures and brackets "169(2), 178(2) and (3), 179, 180" shall be omitted;

(4)

in section 99, in sub-section (1),-

(i)

in clause (b), the words "water and" in two places where they occur shall be omitted;

(ii)

in the proviso, the words "water and", and the words "waterworks and the remainder shall be deemed to be levied in respect of" shall be omitted;

(5)

in section 102,-

(i)

in clause (a), the proviso, the words "water and", and the words "waterworks and the remainder shall be deemed to be levied in respect of" shall be omitted;

(ii)

in clause (b), in the proviso, in sub-clause (i), the words "water and" shall be omitted;

(6)

in section 190, the words "or" shall be omitted;

(7)

in section 191, the words "or with the house-connection of any other person" shall be omitted;

(8)

in section 193, in sub-section (2), the words "and over any lake or reservoir from which a supply of water for use of the City is derived, and over all lands at a distance not exceeding one mile beyond the high water level of any such lake or reservoir", and the words "sewage farms, sewage disposal tanks, filters and other" shall be omitted;

(9)

in section 203, in sub-section (1), the word "sewers", and in sub-section (2) thereof, the word "sewer" shall be omitted;

(10)

in section 213, "water supply" shall be omitted;

(11)

in section 216, in sub-section (1), in clause (c), the word "sewering" shall be omitted;

(12)

in section 218, in sub-section (1), the word "sewered" shall be omitted;

(13)

in section 230, in sub-section (3),-

(i)

in clause (i), the word "cess-pools" shall be omitted;

(ii)

clause (j) shall be omitted;

(iii)

for clauses (k) and (1), the following clause shall be substituted, namely:-

"(k) restrictions on the use of inflammable materials in building;"

(14)

in section 247, for the words "so far as may be apply to wells" the words and figures "not apply to water works and sewerage works within the meaning of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

)" shall be substituted;

(15)

in section 256-A, in sub-section (1), the words "or well" wherever they occur shall be omitted;

(16)

in section 265, in sub-sections (1) and (2), the word "drinking" shall be omitted;

(17)

in section 304, in sub-section (2), the word "water-supply" shall be omitted;

(18)

in section 349,-

(i)

clause (3) shall be omitted;

(ii)

sub-clauses (b) to (f) of clause (5) shall be omitted;

(iii)

clause (7) shall be omitted;

(iv)

in clause (12), the words "and connecting them with municipal drains" shall be omitted;

(v)

in clause (15), the words "and water supply" shall be omitted;

(19)

in section 366, in sub-section (1)-

(a)

in clause (a)-

(i)

the figures "78" shall be omitted;

(ii)

the words "house drainage or the connection of house-drains with municipal drains, or house connections with municipal water-supply or" shall be omitted;

(b)

in clause (c), the figures "262" shall be omitted;

(20)

in section 383, in clause (a), the words and figures "section 168, section 169, section 177, section 178, section 179" shall be omitted;

(21)

in rule 30 of Schedule IV, clause (a) shall be omitted;

(22)

in rule 3 of Schedule V, in clause (b), the words "of sewage farms and all works for the removal or disposal of sewage" and the words "of water-works, drinking fountains, tanks and wells" shall be omitted;

(23)

in Schedule VII and VIII, the entries in column (1) relating to sections 166, 169, 177, 178, 180, 181, 262 and 268 and the corresponding entries in columns (2), (3) and (4) thereof shall be omitted.

In the Tamil Nadu District Municipalities Act, 1920 (Tamil Nadu Act V of),-

(1)

sections 125 to 135, 138 to 142, 223, 231 and 307 shall be omitted;

(2)

in section 3, clause (8-A) shall be re-lettered as clause (8-AA) and before clause (8-AA) as so re-lettered, the following shall be inserted, namely:-

"(8-A) 'drain' means a rain or storm water drain and water tables, chutes and the side drain exclusively meant to drain away the rain water falling on the surface of any street, bridge or causeway, but does not include a drain or sewer within the meaning of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

).";

(3)

in section 39, in sub-section (3), the words "water supply" shall be omitted;

(4)

in section 81, in sub-section (1),-

(i)

in clause (b), the words "water and" and "water or" shall be omitted;

(ii)

in the first proviso, the words "water and" and the words "water works and the remainder shall be deemed to be levied in respect of" shall be omitted; -

(5)

in section 83,-

(i)

in sub-section (2), the words "water and" and the words "water or" shall be omitted;

(ii)

in sub-section (3), the words "water and" and the words "water supply and" shall be omitted;

(6)

in section 150, the words "water supply" shall be omitted;

(7)

in section 151, in sub-section (1), the words "or with the house connection of any other person" shall be omitted;

(8)

in clauses (8) (a) and (b) of sub-section (2) of section 152, the words "for drinking" shall be omitted;

(9)

in section 172, the words "water supply" shall be omitted;

(10)

in clause (c) of sub-section (1) of section 176, the word "sewering" shall be omitted;

(11)

in clause (i) of sub-section (3) of section 191,

(a)

the words "cess-pools" shall be omitted;

(b)

clause (1) shall be omitted;

(12)

in section 207, for the words "so far as may be, apply to a well", the words "not apply to water works and sewerage works within the meaning of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

)" shall be substituted;

(13)

in sub-section (1) of section 216, the words "or well" shall be omitted;

(14)

in section 226,-

(a)

in the marginal heading, the words "used for drinking" shall be omitted;

(b)

in sub-sections (1) and (2), the word "drinking" shall be omitted;

(15)

in sub-section (3) of section 262, the word "water supply" shall be omitted;

(16)

in section 306,-

(i)

clause (3) [except sub-clause (b)] shall be omitted;

(ii)

sub-clauses (b) to (f) of clause (5) shall be omitted;

(iii)

clause (7) shall be omitted;

(iv)

in clause (12), the words "and connecting them with municipal drains" shall be omitted;

(v)

in clause (15), the words "and water supply" shall be omitted;

(17)

in sub-section (1) of section 322,-

(i)

in sub-clause (i) of clause (a), the figures: "131,139" shall be omitted;

(ii)

in sub-clause (ii) of clause (a), the words "house drainage and the connection of house drains with municipal drains or house connection with municipal water supply or" shall be omitted;

(18)

in sub-section (1) of section 340, the words and figures "subject to the provisions of section 139" shall be omitted;

(19)

in rule 39 of Schedule IV, in clause (c), the words "of sewage farms and all works for the removal or disposal of sewage; of water-works, drinking fountains, tanks and wells;" shall be omitted;

(20)

in Schedule VII, the entries relating to sections 127,130,131,138, 139,140,142 and 223 and the entries relating thereto in columns (2) to (4) thereof shall be omitted;

(21)

in Schedule VIII, the entries relating to sections 130,131,138,139 and 140 and the entries relating thereto in columns (2) to (4) thereof shall be omitted.

Part III ? In the [Tamil Nadu Panchayats Act, 1958]

[This Act has been repealed and re-enacted as the Tamil Nadu Panchayats Act, 1994 (Tamil Nadu Act 21 of 1994).]

(Tamil Nadu Act XXXV of 58),-

(1)

after clause (8) of section 2, the following shall be inserted, namely:-

"(8-A) 'drain' means a rain or storm water drain and water tables, chutes, and the side drain exclusively meant to drain away the rain water falling on the surface of any street, bridge or causeway, but does not include a drain or sewer within the meaning of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

);

(2)

in section 63,-

(i)

in clause (c), after the word "sullage", the words "not including sewage" shall be inserted;

(ii)

in clause (g), the words "and of protected water for drinking purposes" shall be omitted;

(3)

to clause (j) of section 64, the following proviso shall be added namely:-

"Provided that nothing in this clause shall apply to water supply for non-irrigation purposes and to sewerage";

(4)

to section 67, the following proviso shall be added, namely:-

"Provided that nothing in this section shall apply to water supply for non-irrigation purposes and to sewerage";

(5)

in section 68,-

(a)

in the marginal heading, the words "water works and" shall be omitted;

(b)

in clause (i), the words "and of protected water for drinking purposes" shall be omitted;

(6)

in section 76,-

(i)

in sub-section (1), the word "sewers" shall be omitted;

(ii)

in sub-section (2), the word "sewer" shall be omitted;

(7)

in section 77,-

(i)

in sub-section (1), the word "sewers" shall be omitted;

(ii)

in sub-section (2), the word "sewer" shall be omitted;

(8)

in clause (b) of section 78, the words "water supply mains" and the words "and sewers" shall be omitted;

(9)

in clause (d) of sub-section (1) of section 82, the words "sewers or" shall be omitted;

(10)

section 84 shall be omitted;

(11)

in section 88,-

(a)

in the marginal heading, for the word "sewage", the word "rubbish" shall be substituted;

(b)

the word "sewage" shall be omitted;

(12)

in clause (a) of sub-section (2) of section 100, the words "and water-supply" shall be omitted;

(13)

clause (xxix) of sub-section (2) of section 178 shall be omitted.

Part IV ? In the Tamil Nadu State Housing Board Act, 1961 (Tamil Nadu Act 17 of 1961),-

(1)

after section 69, the following section shall be inserted, namely:-

"69-A. Scope of Housing or Improvement Schemes. - Notwithstanding anything contained in sections 35 to 69, the Board or any other authority referred to in this Act shall have no power, function or responsibility for making provision in any housing or improvement scheme, or executing or carrying out any work thereunder, in respect of water supply or sewerage services or anything connected therewith in the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area within the meaning of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

), and if any such scheme is in process of being executed in relation to that area on the date of the coming into force of this section, the Board shall continue and complete such execution in accordance with section 27 of the aforesaid Act";

(2)

after section 78, the following section shall be inserted, namely:-

"78-A. Apportionment of betterment fee in certain cases. - Where any betterment fee is levied or recovered under the provisions of this Chapter in respect of any land in the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Area within the meaning of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Water Supply and Sewerage Act (Tamil Nadu Act

28 of 1978

), 1978, and if any such fee or any part thereof is in relation to provision for or improvement of water supply or sewerage services or matters connected therewith, the Board shall pay over to the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Water Supply and Sewerage Board constituted under the aforesaid Act such fee or part thereof:

Provided that if there is any doubt or dispute about the amount to be so paid over, the matter shall be referred to the Government whose decision thereon shall be final."

Part V ? In the Tamil Nadu Water Supply and Drainage Board Act, 1970 (Tamil Nadu Act 4 of 1971),-

(1)

in the long title, after the words "the State of Tamil Nadu", the words "except the [Chennai]
[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Area" shall be inserted;

(2)

in clause (7) of section 2, sub-clause (i) shall be omitted;

(3)

in sub-section (1) of section 4, for clause (d), the following shall be substituted, namely:-

"(d) a whole-time director of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Water Supply and Sewerage Board constituted under the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act
28 of 1978

), nominated by that Board, ex-officio.";

(4)

after section 11, the following section shall be inserted, namely:- 11 -A. "Common service cadre for employees of Board
and the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Water Supply and Sewerage Board. - Notwithstanding anything contained in this Act or in any other law for
the time being in force or in any contract or other instrument, the Board may, with the concurrence of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Water Supply and Sewerage Board constituted under the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act
28 of 1978

), establish common service cadres and service conditions for the staff employed by either Board and thereupon such
staff shall be liable to be posted or transferred to the service of either Board:

Provided that no employee of an existing authority as defined under the aforesaid Act and appointed under section 20 of
that Act, shall be transferred or posted to the service of the Board except with his consent.";

(5)

after section 27, the following section shall be inserted, namely:-

"27-A. Exclusion of Scheme for [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Area. - Notwithstanding anything contained in this Act, the Board or any other authority referred to in this
Act shall have no power, function or responsibility for investigation, preparation or execution of any scheme-

(a)

in relation to the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Area within the meaning of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act
28 of 1978

) on and from the date on which the assets and liabilities of the Board are transferred under section 26 of that Act, and

(b)

for or the benefit of, a local authority (being an existing authority within the meaning of the aforesaid Act) in the said
area, on and from the date on which the assets and liabilities of such local authority are transferred under section 26 of
that Act:

Provided that works in progress within the meaning of Explanation to section 27 of the said Act shall be continued and
completed by the Board in accordance with that section."

Part VI ? In the Tamil Nadu Slum Areas (Improvement and Clearance) Act, 1971 (Tamil Nadu Act 11 of 1971),-

(1)

in section 35, in sub-section (1), the following proviso shall be added, namely;-

"Provided that one of the whole-time directors of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Water Supply and Sewerage Board constituted under the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act
28 of 1978

), specified in this behalf by that Board shall be appointed as a member under this section."

(2)

for section 69, the following section shall be substituted, namely:-

"69. Applicability and effect of this Act. - (1) Notwithstanding anything contained in this Act, the Board or the prescribed authority or any authority referred to in this Act shall have no power, function or responsibility for planning or providing for water supply of sewerage facilities, or for any matter connected therewith, or carrying out any work in relation thereto, in the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Area within the meaning of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act
28 of 1978

), and if any such plan or work is being carried out or executed in relation to that area on the date of coming into force of this section, the Board or any other authority, as the case may be, shall continue and complete such plan or work in accordance with section 27 of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act
28 of 1978

).

(2)

Save as otherwise provided in this Act, the provisions of this Act and the rules made thereunder shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force or any custom, usage or contract or any decree or order of a court or other authority."

Part VII ? In the Tamil Nadu Town and Country Planning Act, 1971 (Tamil Nadu Act 35 of 1972),-

(1)

in sub-section (2) of section 9-A, after clause (g), the following clause shall be inserted, namely:-

"(h) a whole-time director of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Water Supply and Sewerage Board constituted under the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Water Supply and Sewerage Act, 1978, nominated by that Board, ex-officio;"

9.

-E. Relation with the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Water Supply and Sewerage Board. - (1) Notwithstanding anything contained in this Act, the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Development Authority shall fully consult and collaborate the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Water Supply and Sewerage Board constituted under the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act
28 of 1978

) with respect to any provision regarding water supply or sewerage services and matters connected therewith that may

be included in any development plan prepared or to be prepared under this Act for the [Chennai]
[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]
Metropolitan Planning Area or any part thereof.

(2)

With respect to any such development plan, the execution of or the carrying out of any work under such plan shall, insofar it relates to water supply or sewerage service or matters connected therewith, be entrusted to and be the sole responsibility of the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Water Supply and Sewerage Board, and if any work under such plan is in the process of being executed or carried out on the date of coming into force of this section, the [Chennai]

[Substituted for the word 'Madras' by the City of Madras (Alteration of Name) Act, 1996 (Tamil Nadu Act 28 of 1996).]

Metropolitan Development Authority shall continue and completed such work in accordance with section 27 of the Chennai Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

);"

(3)

After section 63, the following section shall be inserted, namely:-

63A.

Apportionment of development charges in certain cases. - Where any development charges are levied or recovered under the provisions of this Chapter in respect of the use or change of use land or building or development of any land or building in the Chennai Metropolitan Planning Area, and if any such charge or any part thereof is relatable to provision for or improvement of water supply or sewerage service, the Chennai Metropolitan Development Authority shall pay over to the Chennai Metropolitan Water Supply and Sewerage Board constituted under the Chennai Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

), such charge or part thereof."

(4)

in section 111,-

(a)

sub-sections (1) and (2) shall be renumbered as sub-sections (2) and (3) respectively;

(b)

before sub-section (2) as so renumbered the following shall be inserted namely:-

"(1) The provisions of this Act shall be read subject to the provisions of the Chennai Metropolitan Water Supply and Sewerage Act, 1978 (Tamil Nadu Act

28 of 1978

);"

(c)

in sub-section (2) as so renumbered, after the words "in any other", the words "custom, usage or contract" shall be inserted;

(d)

in sub-section (3) as so renumbered for the word "notwithstanding" the words "subject to the provisions of sub-section (1), but notwithstanding" shall be substituted.

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